

**DAK GURU***India's First Smart Self-Preparation Portal***STUDY BOOKLET**

CONSTITUTION OF INDIA

Complete Study Notes for LDCE Inspector Posts

Coverage of this Booklet

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Revised & Updated Edition — July 2026*Every currency-sensitive statement verified against primary sources***www.dakguru.com**

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Certain matters dealt with in this booklet were, on the date of publication, in a state of transition — most notably the sanctioned strength of the Supreme Court, which stands altered by an Ordinance while the replacement Bill is still before Parliament. Every such matter is expressly flagged in the text with a Currency Alert, and readers are asked to verify the position afresh before the examination.

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How to Use This Booklet

These notes are built for a working postal official who is preparing after office hours, not for a full-time law student. Everything has therefore been arranged so that a single sitting of forty-five minutes yields one complete, examinable topic. Read the explanation first, then the table, then the memory device — in that order. The tables are designed to be revised on their own in the last week before the examination, without re-reading the prose.

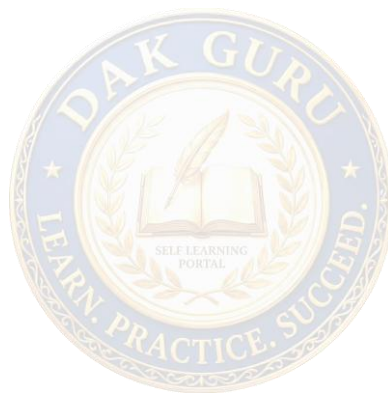
The Six Boxes and What They Mean

Box	What it contains and how to use it
Quick Concept	The single idea that the whole topic rests on, stated in two or three sentences. If you remember nothing else from a section, remember this. Read it before the detail and again after.
Exam Focus	Points that have historically been converted into questions — numbers, exceptions, firsts, and the small distinctions on which a one-mark question turns. These deserve rote memory.
Memory Trick	A mnemonic, acronym or association to lock a list into place. Use it only after you understand the underlying list; a mnemonic learnt before the concept is a liability in the examination hall.
Currency Alert	A statement of law that has changed, or is in the process of changing, since the earlier edition of these notes and since most textbooks in the market were printed. These are the highest-yield paragraphs in the booklet, because the field is full of stale material.
Landmark Case	The judgment that settles the point, with the year and the essential holding. For this paper you are expected to know the case name, the year and the one-line ratio — not the full facts.
Departmental Angle	Where a constitutional provision touches the daily working of the Department of Posts — most obviously Article 311, but also Articles 14, 16, 21 and 226. These recur in the descriptive papers.

A Word on Accuracy

Constitutional law is one of the few subjects in this syllabus where a textbook can be confidently, fluently and completely wrong. A book printed in 2023 will tell you that the Supreme Court has thirty-four judges; it does not. A book printed in 2019 will tell you that Article 15 admits of three exceptions; it admits of four. A book that reproduces an older commentary will tell you that the National Commission for Backward Classes must be consulted on every major policy question affecting backward classes; since 2021 that is no longer true of State lists.

Every such point in this booklet has been checked against the bare Act, the Gazette, the judgment or the official press release, and the source is cited so that you can check it yourself. Part 7 sets out the full list. Where the position could not be conclusively established, that is stated plainly rather than papered over.



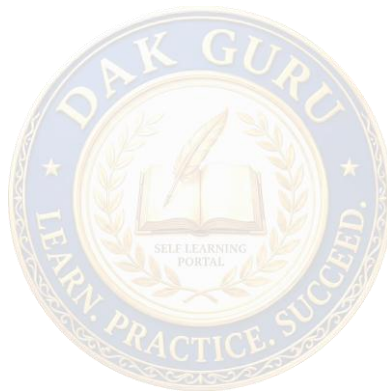
What Has Changed Since the Previous Edition

This edition is not a reprint. The whole booklet was re-verified in July 2026 and the following substantive corrections and additions were made. Candidates who have studied from the earlier edition, or from any commercial guide printed before 2025, should read this table first.

Topic	Position in older material	Corrected / current position
Strength of the Supreme Court	Thirty-four judges — one Chief Justice and thirty-three others, under the Supreme Court (Number of Judges) Amendment Act, 2019.	Thirty-eight judges — one Chief Justice and thirty-seven others. Raised by the Supreme Court (Number of Judges) Amendment Ordinance, 2026 (Ordinance 1 of 2026), promulgated 16 May 2026. The replacement Bill was introduced in the Lok Sabha on 20 July 2026 and was still under consideration on 24 July 2026. See the Currency Alert in Part 4.
Exceptions to Articles 15 and 16	Three exceptions listed under each Article. No mention of the Economically Weaker Sections quota.	A fourth exception exists under each — Article 15(6) and Article 16(6), inserted by the Constitution (One Hundred and Third Amendment) Act, 2019, permitting up to ten per cent reservation for Economically Weaker Sections. Upheld 3:2 in <i>Janhit Abhiyan v. Union of India</i> (2022).
Validity of 'Socialist' and 'Secular' in the Preamble	Treated as settled by the 42nd Amendment alone; no judicial pronouncement noted.	Directly challenged and directly upheld. <i>Dr. Balram Singh v. Union of India</i> , decided 25 November 2024 by the Supreme Court, held that Parliament's power under Article 368 extends to the Preamble and that the date of adoption does not restrict it.
Consultation with the National Commission for Backward Classes	Union and State Governments must consult the Commission on all major policy matters affecting socially and educationally backward classes.	Correct for the Central List only. The Constitution (One Hundred and Fifth Amendment) Act, 2021 inserted a proviso to Article 338-B(9) excluding State and Union territory lists prepared under Article 342A(3) from the consultation requirement.

Topic	Position in older material	Corrected / current position
Appointment of judges	Silent — the Collegium and the National Judicial Appointments Commission were not covered at all.	Now covered in full. The 99th Amendment and the NJAC Act, 2014 were struck down in the Fourth Judges Case (2015) and the Collegium system revived. This is a standing examination favourite and its omission was a serious gap.
Article 224A — retired judges of High Courts	Described as an available power, effectively dormant.	Revived and operating. Lok Prahari v. Union of India (2021) laid down guidelines; the Supreme Court relaxed them on 30 January 2025; the Collegium approved five ad hoc judges for the Allahabad High Court on 3 February 2026.
Advisory jurisdiction under Article 143	Described in the abstract with no recent illustration.	Illustrated by Special Reference No. 1 of 2025, on which the Supreme Court delivered its opinion on 20 November 2025 — the most significant use of Article 143 in decades.
Article 39(b) — material resources of the community	Read as covering all privately owned resources, following the older line of authority.	Narrowed. Property Owners Association v. State of Maharashtra, decided 5 November 2024 by a nine-judge Bench, held that not every privately owned resource is a material resource of the community.
Child labour legislation under Article 24	The Child Labour (Prohibition and Regulation) Act, 1986, prohibiting employment below fourteen in hazardous occupations.	Renamed and widened. The 2016 Amendment renamed it the Child and Adolescent Labour (Prohibition and Regulation) Act, 1986, banned employment of children below fourteen in all occupations subject to narrow exceptions, and created the category of 'adolescent' (fourteen to eighteen).
Preventive detention under Article 22	Three months, with a bare statement that the 44th Amendment reduced it to two.	Three months remains the operative period. Section 3 of the 44th Amendment Act, 1978 was never brought into force and has still not been notified as on July 2026 — a point that is regularly mis-stated.

Topic	Position in older material	Corrected / current position
Union territories with their own High Court	Delhi and Jammu & Kashmir.	Delhi alone has an exclusive High Court. The High Court of Jammu & Kashmir and Ladakh is a common High Court for two Union territories following the reorganisation of 31 October 2019.
Criminal appeals to the High Court	Described by reference to the Code of Criminal Procedure, 1973.	The Bharatiya Nagarik Suraksha Sanhita, 2023 replaced the Code with effect from 1 July 2024. Article 20 and Article 21 discussion involving penal law must likewise refer to the Bharatiya Nyaya Sanhita, 2023.



Part 1

The Preamble

Quick Concept

The Preamble is the introductory statement that precedes the Constitution. It is not a chapter of the Constitution in the ordinary sense — it confers no power and imposes no prohibition — but it declares the source from which the Constitution draws its authority, the character of the State that the Constitution creates, the objectives that the State is to pursue, and the date on which the whole was adopted. Everything that follows in the Constitution is, in principle, to be read in the light of it.

1.1 The Text of the Preamble

The text set out below is the Preamble as it stands today. The words in square brackets were inserted by the Constitution (Forty-second Amendment) Act, 1976 and did not form part of the Preamble as adopted on 26 November 1949.

Text of the Preamble

WE, THE PEOPLE OF INDIA,

having solemnly resolved to constitute India into a **SOVEREIGN [SOCIALIST] [SECULAR] DEMOCRATIC REPUBLIC** and to secure to all its citizens:

JUSTICE, social, economic and political;

LIBERTY of thought, expression, belief, faith and worship;

EQUALITY of status and of opportunity;

and to promote among them all **FRATERNITY** assuring the dignity of the individual and the unity **[and integrity]** of the Nation;

**IN OUR CONSTITUENT ASSEMBLY this twenty-sixth day of November, 1949, do
HEREBY ADOPT, ENACT AND GIVE TO OURSELVES THIS CONSTITUTION.**

Exam Focus — the Only Amendment

The Preamble has been amended once and once only, by the 42nd Amendment Act, 1976, which made three changes: it inserted 'Socialist' and 'Secular' between

‘Sovereign’ and ‘Democratic’, and it altered ‘unity of the Nation’ to ‘unity and integrity of the Nation’. No amendment has been made to the Preamble since. The Constitution (Amendment) Bill introduced in the Rajya Sabha in 2025 as a Private Member’s Bill seeking deletion of ‘socialist’ and ‘secular’ is a Private Member’s Bill and has not been enacted; a Private Member’s Bill is not law and must not be described as an amendment.

1.2 Origin, Authorship and the Objectives Resolution

The Preamble is based on the Objectives Resolution, which was drafted and moved in the Constituent Assembly by Pandit Jawaharlal Nehru on 13 December 1946 and adopted by the Assembly on 22 January 1947. The Resolution set out in broad terms what the Constitution was to achieve; the Preamble is its condensed and formal expression. This is why the Preamble is sometimes described as the Objectives Resolution in constitutional dress.

The practice of beginning a Constitution with a Preamble was borrowed from the Constitution of the United States of America, which was the first to open in this manner. Many later Constitutions, including India’s, adopted the same device.

An important procedural point is regularly examined. The Preamble was enacted by the Constituent Assembly last, after the rest of the Constitution had already been enacted. The reason was practical: the Assembly wished to ensure that the Preamble conformed to the Constitution it introduced, rather than the reverse. While putting it to the vote, the President of the Constituent Assembly stated the question in the form ‘that the Preamble stands part of the Constitution’, and the motion was adopted in that form — a point that later assumed importance when the Supreme Court came to consider whether the Preamble is part of the Constitution.

What the Preamble Has Been Called

Description	Attributed to
The ‘identity card’ of the Constitution	N. A. Palkhivala, jurist and constitutional lawyer
The ‘horoscope of our sovereign democratic republic’	K. M. Munshi, member of the Drafting Committee
‘The most precious part of the Constitution’	Pandit Thakur Das Bhargava, member of the Constituent Assembly
‘It expresses what we had thought or dreamt so long’	Sir Alladi Krishnaswami Iyer, member of the Drafting Committee

Description	Attributed to
The 'soul of the Constitution'; more than a declaration, unlike the American Declaration of Independence	M. Hidayatullah, former Chief Justice of India
The 'key-note' to the Constitution, in Principles of Social and Political Theory (1951)	Sir Ernest Barker, English political scientist

Exam Focus

The Preamble is also commonly described as the soul of the Constitution, the key to the Constitution, a jewel set in the Constitution, and a proper yardstick by which to measure the worth of the Constitution. In an objective paper the examiner will normally test the attribution rather than the phrase, so learn who said what.

1.3 The Four Ingredients of the Preamble

Analytically, the Preamble contains four components. Every question that asks what the Preamble 'reveals' or 'contains' is asking about these four.

#	Component	What it establishes
1	Source of authority	The Constitution derives its authority from the people of India — 'We, the People of India'. Not from the Crown, not from the Constituent Assembly as a body, and not from any grant of the departing colonial power. This is the textual foundation of popular sovereignty.
2	Nature of the Indian State	India is declared to be a Sovereign, Socialist, Secular, Democratic Republic. These five words describe the character of the polity that the Constitution creates.
3	Objectives of the Constitution	Justice, Liberty, Equality and Fraternity are specified as the objectives to be secured to and promoted among the citizens.
4	Date of adoption	The twenty-sixth day of November, 1949 is stipulated as the date on which the Constitution was adopted, enacted and given by the people to themselves.

Memory Trick

SANO — Source of authority · Attributes of the State (its nature) · Noble objectives · Official date of adoption.

Exam Focus — 26 November versus 26 January

Distinguish the two November dates carefully. 26 November 1949 is the date of adoption, and it is the date named in the Preamble; it is observed as Constitution Day (Samvidhan Divas). 26 January 1950 is the date of commencement, and it is not mentioned in the Preamble at all; it is observed as Republic Day. Certain provisions — those relating to citizenship, elections, provisional Parliament and a few others — came into force on 26 November 1949 itself.

1.4 The Key Words Explained

Sovereign

India is neither a dependency nor a dominion of any other nation. There is no authority above the Indian State, and India is free to conduct both its internal and its external affairs as it chooses. Sovereignty in this sense carries two practical consequences that are often examined: India may acquire foreign territory, and India may cede a part of its own territory to a foreign State, subject to the constitutional procedure applicable to such cession.

India's membership of the Commonwealth of Nations and of the United Nations Organisation does not in any way qualify or limit its sovereignty. Membership of the Commonwealth is voluntary and the British Crown is merely the symbolic head of that association; the Crown has no constitutional position whatever in India.

Socialist

The word was added by the 42nd Amendment in 1976, but socialist content was present in the Constitution from the beginning through several of the Directive Principles of State Policy — most obviously Article 39, which speaks of the equitable distribution of material resources and of preventing the concentration of wealth.

Indian socialism is 'democratic socialism' and not 'communistic socialism', which is to say State socialism. Democratic socialism holds faith in a mixed economy in which the public and the private sectors co-exist, and it seeks to achieve its ends by democratic and constitutional means rather than by the nationalisation of all means of production. The Congress party had adopted a resolution for a 'socialistic pattern of society' at its Avadi session in 1955, long before the word entered the Preamble. Indian socialism is often described as a blend of Marxism and Gandhism, leaning heavily towards the Gandhian variety. The New Economic Policy of 1991 — liberalisation, privatisation and globalisation — is generally said to have diluted the socialist content of Indian economic policy, though it left the word in the Preamble untouched.

Currency Alert — What 'Socialist' Does Not Mean

In *Property Owners Association v. State of Maharashtra*, decided on 5 November 2024, a nine-judge Bench of the Supreme Court observed that the Constitution, framed in broad terms, permits an elected Government to adopt whichever structure of economic governance it is accountable to the electorate for, and noted the transition of the Indian economy from the dominance of public investment to the co-existence of public and private investment. The word 'socialist' in the Preamble therefore does not lock the country into any one economic model. This observation was expressly relied upon a fortnight later in *Dr. Balram Singh v. Union of India* (25 November 2024).

Secular

This word too was added by the 42nd Amendment in 1976. The concept, however, was always implicit in the Constitution: Articles 25 to 28 guarantee the fundamental right to freedom of religion, and the Supreme Court had already recognised secularism as part of the constitutional scheme before the word appeared in the Preamble.

The Indian Constitution embodies a positive conception of secularism. It does not mean, as in some Western constitutional systems, a wall of separation under which the State ignores religion altogether. It means instead that all religions, irrespective of their numerical strength, enjoy the same status and the same protection from the State — *sarva dharma sama bhava*. The State has no religion of its own, does not favour or patronise any religion, and treats all faiths equally.

Secularism was declared to be part of the basic structure of the Constitution in *S. R. Bommai v. Union of India* (1994), and that holding was expressly reaffirmed in the 2024 decision noticed below.

Democratic

The term rests on the doctrine of popular sovereignty — the possession of supreme power by the people. Democracy is of two kinds: direct, where the people exercise power themselves, and indirect or representative, where they exercise it through elected representatives. India has adopted representative parliamentary democracy, in which the executive is responsible to the legislature and remains in office only so long as it enjoys the confidence of the popular House.

The democratic character of the Indian polity manifests itself in universal adult franchise, periodic elections, the rule of law, an independent judiciary, and the absence of

discrimination on grounds prohibited by the Constitution. Dr. B. R. Ambedkar, speaking in the Constituent Assembly on 25 November 1949, emphasised that the word is used in the Preamble in its broader sense, embracing not merely political democracy but social and economic democracy as well — political democracy, he warned, cannot last unless it is underpinned by social democracy.

Exam Focus

The four devices of direct democracy are Referendum, Initiative, Recall and Plebiscite, of which Switzerland is the standard illustration. None of the four is provided for at the Union or State level under the Indian Constitution. Representative democracy is itself of two kinds — parliamentary and presidential — and India has adopted the parliamentary form.

Republic

In a republic the head of the State is always elected, directly or indirectly, for a fixed term. In a monarchy the position is hereditary and held for life. India has an elected President who is indirectly elected by an electoral college for a fixed term of five years.

The word carries two further implications beyond the mode of choosing the Head of State. It means that political sovereignty vests in the people and not in any single individual, and it means the absence of any privileged class — which is why Article 18 abolishes titles and why every public office in India is, in principle, open to every citizen.

Aspect	Monarchy	Republic
Head of State	Holds office by hereditary succession	Always elected, directly or indirectly
Tenure	For life, until abdication or death	For a fixed term prescribed by law
Illustration	The United Kingdom	India and the United States of America
Privileged class	Recognised by birth	Not recognised; no titles (Article 18)

1.5 The Four Objectives

Justice — Social, Economic and Political

The Preamble names three forms of justice, in that order. The order is not accidental; it reflects the framers' view that political justice without social and economic justice is hollow.

Form of justice	Meaning	Where it is secured
Social justice	Equal treatment of all citizens without any social distinction based on caste, colour, race, religion or sex. No section enjoys special privileges, and the conditions of the socially and educationally disadvantaged are actively improved.	Fundamental Rights (notably Articles 15, 16 and 17) and the Directive Principles (notably Article 46)
Economic justice	No discrimination on the ground of wealth, income or economic status. Wealth is to be distributed so as to secure a decent standard of life to all who labour.	Directive Principles — principally Article 39
Political justice	Equal, free and fair opportunity for every citizen to participate in the political process — an equal right to vote, to contest, and to hold public office.	Articles 325 and 326, and Article 16

Memory Trick

The ideal of Justice in the Preamble was drawn from the Russian Revolution of 1917. The ideals of Liberty, Equality and Fraternity were drawn from the French Revolution of 1789–1799. Together these two sources account for all four objectives.

Liberty — of Thought, Expression, Belief, Faith and Worship

Liberty in the Preamble means the absence of restraints on individual activity, together with the provision of opportunities for the development of the individual personality. The five heads named — thought, expression, belief, faith and worship — correspond broadly to the freedoms secured by Article 19 and by Articles 25 to 28 of Part III.

The liberty conceived by the Preamble is not licence. It does not mean freedom to do anything whatever; it means freedom within the limits laid down by the Constitution itself, which is why Article 19 permits reasonable restrictions on each of the six freedoms it guarantees.

Equality — of Status and of Opportunity

Equality means the absence of special privileges for any section of society and the provision of adequate opportunities for all individuals without discrimination. The Preamble

embraces three dimensions of equality, each secured by identifiable provisions of the Constitution.

Dimension	Constitutional provisions
Civic equality	Article 14 — equality before the law and equal protection of the laws Article 15 — prohibition of discrimination on grounds of religion, race, caste, sex or place of birth Article 16 — equality of opportunity in matters of public employment Article 17 — abolition of untouchability Article 18 — abolition of titles
Political equality	Article 325 — no person to be excluded from the electoral roll on grounds of religion, race, caste or sex Article 326 — elections to the Lok Sabha and to State Legislative Assemblies on the basis of adult suffrage
Economic equality	Article 39 (Directive Principle) — an equal right to adequate means of livelihood for men and women alike, and equal pay for equal work for both men and women

Fraternity — Assuring Dignity and Unity

Fraternity means a sense of brotherhood among all the people of India. The Constitution promotes it institutionally through the system of single citizenship: unlike the United States, India has no separate State citizenship, so that a citizen of Tamil Nadu is a citizen of India and nothing else.

- Article 51-A makes it the duty of every citizen to promote harmony and the spirit of common brotherhood transcending religious, linguistic, regional and sectional diversities, and to renounce practices derogatory to the dignity of women.
- The Preamble requires fraternity to assure two things — the dignity of the individual, and the unity and integrity of the nation. The word 'integrity' was added by the 42nd Amendment in 1976.
- According to K. M. Munshi, the expression 'dignity of the individual' signifies that the Constitution is concerned not merely with the material betterment of the citizen but with the recognition that the personality of every individual is sacred.
- The phrase 'unity and integrity of the nation' embraces both the psychological and the territorial dimensions of national integration — the first directed against communal, regional and linguistic fissures, the second against secession.
- Article 1 describes India as a 'Union of States' rather than a federation of States, and the framers chose that expression deliberately to make clear that the Union is indestructible and that no State has any right to secede from it.

1.6 Is the Preamble Part of the Constitution?

Quick Concept

This is the single most important controversy attached to the Preamble and it is examined more often than any other point in Part 1. The answer has changed judicially. The Preamble was held not to be part of the Constitution in 1960, and that view was expressly overruled in 1973.

Case	Year	What the Supreme Court held
Berubari Union (In re)	1960	The Preamble is NOT part of the Constitution. It is, however, a key to the minds of the makers and may legitimately be used to interpret an ambiguous provision. The reference itself arose under Article 143(1) on the Indo-Pakistan agreement concerning the Berubari Union.
Kesavananda Bharati v. State of Kerala	1973	The Preamble IS part of the Constitution. The opinion in Berubari Union was expressly held to be wrong. The Preamble may therefore be amended under Article 368, but not so as to destroy the basic features it embodies.
LIC of India v. Consumer Education & Research Centre	1995	Reaffirmed that the Preamble is an integral part of the Constitution.
Dr. Balram Singh v. Union of India	2024	Reaffirmed once more, and applied. Parliament's amending power under Article 368 extends to the Preamble, and the date of adoption recited in the Preamble does not restrict that power.

Two important limitations survive the holding that the Preamble is part of the Constitution, and both are regularly examined.

- **The Preamble is neither a source of power nor a limitation on power.** It confers no power upon the legislature and imposes no prohibition upon it. A statute cannot be struck down merely because it is said to be contrary to the spirit of the Preamble, and equally, no power can be claimed for the legislature by pointing to a word in the Preamble.
- **The Preamble is non-justiciable.** Its provisions are not enforceable in a court of law. No writ lies to enforce 'fraternity' or 'socialism' as such, though the values in the Preamble will colour the interpretation of provisions that are enforceable.

1.7 Can the Preamble Be Amended?

The question whether the Preamble could be amended under Article 368 arose for the first time in *Kesavananda Bharati v. State of Kerala* (1973). The petitioner argued that the Preamble could not be amended at all, on two grounds: that it was not part of the Constitution, and that in any event the amending power in Article 368 could not be used to destroy or damage the basic elements or fundamental features enshrined in it.

The Supreme Court held that the Preamble is part of the Constitution and can therefore be amended, but subject to the crucial condition that no amendment may be made to the basic features it embodies. The opinion expressed in *Berubari Union* to the contrary was held to be wrong. On this reasoning the 42nd Amendment of 1976 was valid, because adding 'Socialist', 'Secular' and 'integrity' gave expression to values already implicit in the Constitution rather than destroying any basic feature.

Currency Alert — the 2024 Judgment

Dr. Balram Singh and Others v. Union of India — decided 25 November 2024

Three writ petitions, by Dr. Subramanian Swamy, Advocate Ashwini Kumar Upadhyay and Balram Singh, challenged the insertion of 'Socialist' and 'Secular' into the Preamble by the 42nd Amendment. The petitioners argued that the amendment was made during the Emergency, that the Constituent Assembly had not sanctioned it, and that inserting words into a document which recites its own date of adoption as 26 November 1949 amounted to a fraud on the Constitution.

A Bench of Chief Justice Sanjiv Khanna and Justice Sanjay Kumar dismissed the petitions. The Court held that Parliament's amending power under Article 368 extends to the Preamble; that the date of adoption recited in the Preamble does not restrict that power; that secularism had already been declared part of the basic structure in *S. R. Bommai* (1994); and that socialism in the Indian context connotes a welfare State and is not prescriptive of any particular economic model. The Court also noted the delay of some forty-four years in bringing the challenge, and that both words have by now become integral to the Preamble.

For the examination, remember the case name, the year 2024, and the one-line holding: the Preamble is amendable under Article 368, and the insertion of 'Socialist' and 'Secular' is valid.

1.8 Part 1 — Master Summary

Aspect	Position
Based on	The Objectives Resolution moved by Pandit Jawaharlal Nehru on 13 December 1946, adopted 22 January 1947
Practice borrowed from	The Constitution of the United States of America
Called the 'identity card' by	N. A. Palkhivala
Nature of the State	Sovereign, Socialist, Secular, Democratic Republic
Objectives	Justice (social, economic, political); Liberty; Equality; Fraternity
Justice ideal drawn from	The Russian Revolution, 1917
Liberty, Equality and Fraternity drawn from	The French Revolution, 1789–1799
Date of adoption recited	26 November 1949 — Constitution Day
Date of commencement	26 January 1950 — Republic Day; NOT mentioned in the Preamble
Amended	Once only — by the 42nd Amendment Act, 1976 (Socialist, Secular, integrity)
Part of the Constitution?	Yes — Kesavananda Bharati (1973), reaffirmed in LIC of India (1995) and Dr. Balram Singh (2024). Not so held in Berubari Union (1960), which stands overruled
Amendable?	Yes, under Article 368, but the basic features it embodies may not be destroyed
Justiciable?	No — not enforceable in a court of law
Source of power?	No — neither a source of legislative power nor a prohibition upon it

Memory Trick

For the four objectives, remember JLEF — Justice, Liberty, Equality, Fraternity, in the order in which the Preamble names them. For the five attributes of the State, remember that the two inserted words sit in the middle: So-Soc-Sec-Dem-Rep, that is Sovereign, Socialist, Secular, Democratic, Republic.

Part 2

Fundamental Rights

Part III of the Constitution — Articles 12 to 35

Quick Concept

The Fundamental Rights are contained in Part III of the Constitution, Articles 12 to 35. Part III was inspired by the Bill of Rights of the Constitution of the United States of America and is rightly described as the Magna Carta of India, being the most elaborate charter of rights found in any written Constitution in the world. These rights are fundamental in two senses: they are fundamental to the development of the human personality, and they are enforceable directly in the highest court of the land.

- Fundamental Rights are guaranteed against arbitrary State action. They uphold equality, dignity, the public interest and the unity of the nation.
- They prevent the establishment of authoritarian and despotic rule, protect the liberties of the individual against invasion by the State, and operate as limitations both on the tyranny of the executive and on arbitrary laws of the legislature.
- They aim, in the classic phrase, at establishing 'a government of laws and not of men'.
- They are not absolute. Every Fundamental Right is subject to reasonable restrictions, and most are subject to express exceptions written into the Article itself.

#	Fundamental Right	Articles
1	Right to Equality	14 to 18
2	Right to Freedom	19 to 22
3	Right against Exploitation	23 to 24
4	Right to Freedom of Religion	25 to 28
5	Cultural and Educational Rights	29 to 30
6	Right to Constitutional Remedies	32

Exam Focus — Seven Became Six

The original Constitution provided for SEVEN Fundamental Rights. The seventh was the Right to Property under Article 31, together with Article 19(1)(f). Both were deleted from Part III by the Constitution (Forty-fourth Amendment) Act, 1978, and the right to property was re-enacted as a bare legal or constitutional right in Article 300-A, which stands in Part XII. Consequently there are now SIX Fundamental Rights, and Article 19 guarantees SIX freedoms rather than the original seven. Because the right to property is no longer a Fundamental Right, it cannot be enforced by a petition under Article 32, though it can still be enforced under Article 226 or by an ordinary suit.

Memory Trick

EFERCA — Equality, Freedom, Exploitation (right against), Religion (freedom of), Cultural and educational, Article 32 remedies.

2.1 Article 12 — The Definition of ‘the State’

Fundamental Rights are, as a rule, available against the State and not against private individuals. Article 12 is therefore the gateway to the whole of Part III: unless the body complained against falls within the definition of ‘the State’, no writ under Article 32 will ordinarily lie. This Article was omitted altogether from the earlier edition of these notes and is restored here because it is examined regularly.

For the purposes of Part III, ‘the State’ includes four categories of authority.

Category	What it covers
Government and Parliament of India	The executive and legislative organs of the Union — including the Department of Posts and every officer acting on its behalf
Government and Legislature of each State	The executive and legislative organs of the States
All local authorities	Municipalities, panchayats, district boards, port trusts, improvement trusts and similar bodies
All other authorities	Statutory and non-statutory authorities within the territory of India, or under the control of the Government of India — the expression that has generated most of the litigation

Exam Focus

Two settled points are worth carrying into the hall. First, the judiciary is 'the State' when it acts in its administrative or rule-making capacity, but a judgment delivered in the exercise of judicial power is not ordinarily challenged as a violation of Fundamental Rights. Second, the expression 'other authorities' has been read to include bodies which are financially, functionally and administratively dominated by the Government — the instrumentality or agency test — so that a Government company or a statutory corporation may be 'the State' even though it is not a department of Government.

2.2 Article 13 — Laws Inconsistent with Fundamental Rights

Article 13 is the provision that makes the Fundamental Rights judicially enforceable against legislation, and it is the express constitutional foundation of the power of judicial review. It too was absent from the earlier edition and is restored here.

- All pre-Constitution laws in force in India immediately before the commencement of the Constitution are void to the extent of their inconsistency with the Fundamental Rights.
- The State shall not make any law which takes away or abridges the Fundamental Rights, and any law made in contravention of this prohibition is void to the extent of the contravention.
- 'Law' for this purpose is defined widely and includes any Ordinance, order, bye-law, rule, regulation, notification, custom or usage having the force of law — which is why departmental rules and standing orders are open to challenge on Fundamental Rights grounds.
- Article 13(4), inserted by the 24th Amendment in 1971, provides that nothing in Article 13 shall apply to a constitutional amendment made under Article 368. The effect of that clause is, however, controlled by the basic structure doctrine laid down in *Kesavananda Bharati* (1973), under which a constitutional amendment remains open to challenge if it damages a basic feature.

Two Doctrines Worth Knowing

Two doctrines built on Article 13 are frequently examined. Under the doctrine of eclipse, a pre-Constitution law inconsistent with a Fundamental Right is not dead but dormant; it revives if the inconsistency is removed by a later amendment. Under the doctrine of severability, where only part of a statute offends a Fundamental Right, only that part is struck down, provided the remainder can stand independently.

2.3 Fundamental Right 1 — Right to Equality (Articles 14 to 18)

Article 14 — Equality before Law and Equal Protection of the Laws

The State shall not deny to any person equality before the law or the equal protection of the laws within the territory of India. The Article contains two distinct guarantees which are often confused.

Expression	Origin	Character	Meaning
Equality before the law	British	Negative	Absence of any special privilege in favour of any person; equal subjection of all persons to the ordinary law of the land administered by the ordinary courts
Equal protection of the laws	American	Positive	Equality of treatment in equal circumstances; like should be treated alike, which necessarily permits reasonable classification of unlike cases

- Article 14 confers rights on all persons, whether citizens or foreigners. The word 'person' includes legal persons — corporations, companies and registered societies.
- The Supreme Court has held that the Rule of Law embodied in Article 14 is a basic feature of the Constitution and cannot be destroyed even by a constitutional amendment.
- Equality under Article 14 is not absolute. It permits reasonable classification, which must satisfy two tests: the classification must rest on an intelligible differentia distinguishing those grouped together from those left out, and that differentia must have a rational nexus with the object sought to be achieved by the law.
- Article 14 also strikes at arbitrariness. State action which is arbitrary is, for that reason alone, violative of Article 14 — a proposition of considerable practical importance in departmental service matters.

Memory Trick

Article 14 = EBL + EPL. Equality Before Law is British and negative; Equal Protection of Laws is American and positive.

Exceptions to the Rule of Equality — Article 361

The rule of equality before the law is subject to constitutional exceptions, of which the immunities of the President and the Governors under Article 361 are the most important.

- The President and a Governor are not answerable to any court for the exercise and performance of the powers and duties of their office.
- No criminal proceedings whatsoever shall be instituted or continued against them during their term of office.
- No process for their arrest or imprisonment shall issue from any court during their term of office.
- No civil proceedings in respect of their personal acts shall be instituted during their term of office until the expiration of two months after notice has been delivered to them.

Beyond Article 361, note also the immunities of Members of Parliament and of State Legislatures in respect of anything said or any vote given in the House (Articles 105 and 194), the protection of foreign sovereigns, ambassadors and diplomats under international law, and the special protection of Article 31-C in respect of laws giving effect to certain Directive Principles.

Article 15 — Prohibition of Discrimination

The State shall not discriminate against any citizen on grounds only of religion, race, caste, sex or place of birth, or any of them. Two words in that formula are crucial and are regularly tested. 'Discrimination' means an adverse distinction, so a favourable distinction is not caught; and 'only' means that if the distinction rests on some ground in addition to a prohibited ground, the Article is not violated.

Article 15 further provides that no citizen shall, on any of those grounds, be subjected to any disability, liability, restriction or condition with regard to access to shops, public restaurants, hotels and places of public entertainment, or the use of wells, tanks, bathing ghats, roads and places of public resort maintained wholly or partly out of State funds or dedicated to the use of the general public.

The Four Exceptions to Article 15

#	Exception	Source
1	The State may make any special provision for women and children — for example, reservation of seats for women in local bodies, or free education for children.	Article 15(3), original
2	The State may make any special provision for the advancement of socially and educationally backward classes, or for the Scheduled Castes and the Scheduled Tribes — for example,	Article 15(4), inserted by the 1st Amendment, 1951

#	Exception	Source
	reservation of seats or fee concessions in public educational institutions.	
3	The State may make any special provision for the advancement of socially and educationally backward classes, the Scheduled Castes and the Scheduled Tribes, relating to their admission to educational institutions including private institutions, whether aided or unaided by the State, but EXCLUDING minority educational institutions.	Article 15(5), inserted by the 93rd Amendment, 2005
4	The State may make any special provision for the advancement of any economically weaker sections of citizens, including reservation of up to TEN PER CENT of seats in educational institutions including private institutions, whether aided or unaided, but excluding minority educational institutions. This reservation is in addition to existing reservations.	Article 15(6), inserted by the 103rd Amendment, 2019

Currency Alert — the Fourth Exception

Almost every guide printed before 2020 lists only three exceptions to Article 15 and three to Article 16. That is now wrong. The Constitution (One Hundred and Third Amendment) Act, 2019 inserted Article 15(6) and Article 16(6), creating a reservation of up to ten per cent for Economically Weaker Sections in educational institutions and in appointments to posts under the State. The beneficiaries are those who are not already covered by Articles 15(4), 15(5) or 16(4) — that is, the reservation is confined to persons outside the Scheduled Castes, the Scheduled Tribes and the non-creamy-layer Other Backward Classes.

The amendment was challenged and upheld. In *Janhit Abhiyan v. Union of India* (7 November 2022) a Constitution Bench of five judges held, by a majority of 3:2, that reservation founded solely on economic criteria does not violate the basic structure, and that excluding the classes already covered by Articles 15(4), 15(5) and 16(4) does not damage the equality code. The majority further observed that the fifty per cent ceiling laid down in *Indira Sawhney* is not inflexible and does not itself form part of the basic structure. The review petition against that judgment was dismissed in 2023.

Article 16 — Equality of Opportunity in Public Employment

Article 16 guarantees equality of opportunity for all citizens in matters of employment or appointment to any office under the State, and provides that no citizen shall be discriminated against in respect of any such employment or office on grounds only of religion, race, caste,

sex, descent, place of birth or residence, or any of them. Note that the grounds here are seven, two more than the five listed in Article 15 — descent and residence are added.

The Exceptions to Article 16

#	Exception	Provision
1	Parliament may prescribe residence within a State or Union territory as a condition for certain classes of employment there. The Public Employment (Requirement as to Residence) Act, 1957 was enacted under this power and expired in 1974; no such provision now exists except in relation to Andhra Pradesh and Telangana.	Article 16(3)
2	The State may reserve appointments or posts in favour of any backward class of citizens which, in its opinion, is not adequately represented in the services under the State.	Article 16(4)
3	The State may provide for reservation in matters of promotion, with consequential seniority, for the Scheduled Castes and the Scheduled Tribes not adequately represented in the services.	Articles 16(4-A) and 16(4-B), inserted by the 77th, 81st and 85th Amendments
4	A law may provide that the incumbent of an office in connection with the affairs of any religious or denominational institution, or a member of its governing body, shall belong to that particular religion or denomination.	Article 16(5)
5	The State may make provision for reservation of up to TEN PER CENT of appointments or posts in favour of the economically weaker sections of citizens, in addition to existing reservations.	Article 16(6), inserted by the 103rd Amendment, 2019

Departmental Angle

Article 16 is the constitutional foundation of every recruitment rule, promotion order and reservation roster in the Department of Posts. A departmental promotion that is arbitrary, or a recruitment rule that discriminates on a prohibited ground, is challengeable under Articles 14 and 16 read together, ordinarily before the Central Administrative Tribunal in the first instance and thereafter before the High Court under Article 226.

Article 17 — Abolition of Untouchability

- Untouchability is abolished and its practice in any form is forbidden. The enforcement of any disability arising out of untouchability is an offence punishable in accordance with law.
- The right is available against both the State and private individuals, and it is one of the few Fundamental Rights that is absolute — it admits of no exception and no reasonable restriction.
- The term 'untouchability' is not defined in the Constitution.
- Parliament enacted the Untouchability (Offences) Act, 1955. In 1976 that Act was comprehensively amended and renamed the Protection of Civil Rights Act, 1955, so as to enlarge its scope and make its penal provisions more stringent. It is supplemented by the Scheduled Castes and the Scheduled Tribes (Prevention of Atrocities) Act, 1989.

Article 18 — Abolition of Titles

Article 18 abolishes titles and makes four provisions, each of which should be remembered separately.

- It prohibits the State from conferring any title on any person, whether a citizen or a foreigner, except a military or an academic distinction.
- It prohibits a citizen of India from accepting any title from any foreign State.
- A foreigner holding any office of profit or trust under the State may not accept any title from any foreign State without the consent of the President.
- No citizen and no foreigner holding any office of profit or trust under the State may accept any present, emolument or office of any kind from or under any foreign State without the consent of the President.

Exam Focus

National awards such as the Bharat Ratna and the Padma awards were held by the Supreme Court in 1996 not to violate Article 18, because they are not 'titles' within the meaning of the Article. They are, however, not to be used as suffixes or prefixes to the recipient's name; if so used, the award is liable to be forfeited.

2.4 Fundamental Right 2 — Right to Freedom (Articles 19 to 22)

Article 19 — The Six Freedoms

Article 19 guarantees to all CITIZENS — and not to foreigners or to legal persons such as companies — six freedoms. Originally there were seven; the right to acquire, hold and dispose of property, formerly Article 19(1)(f), was deleted by the 44th Amendment Act, 1978.

#	Freedom	Scope, and the grounds on which it may be restricted
(a)	Speech and expression	The right to express one's views and opinions freely by word of mouth, writing, printing, picturing or any other manner. It has been held to include freedom of the press, commercial advertisement, the right against telephone tapping, the right to telecast, the right to know, the freedom of silence, the right against pre-censorship, and the right to demonstration and picketing — but NOT the right to strike. Restrictions may be imposed on eight grounds: sovereignty and integrity of India, security of the State, friendly relations with foreign States, public order, decency or morality, contempt of court, defamation, and incitement to an offence.
(b)	Assembly	The right to assemble peaceably and without arms, including public meetings, demonstrations and processions. The assembly must be peaceful and unarmed. Restrictions may be imposed in the interests of the sovereignty and integrity of India or of public order.
(c)	Association	The right to form associations, unions or co-operative societies — including political parties, companies, clubs and trade unions. The words 'or co-operative societies' were added by the 97th Amendment, 2011. Restrictions may be imposed on grounds of sovereignty and integrity of India, public order or morality. The right to form an association does not carry with it a guaranteed right to recognition or to strike.
(d)	Movement	The right to move freely throughout the territory of India. Restrictions may be imposed in the interests of the general public and for the protection of the interests of any Scheduled Tribe.
(e)	Residence	The right to reside and settle in any part of the territory of India. It has two limbs: the right to reside temporarily in any place, and the right to settle permanently. The grounds of restriction are the same as for freedom of movement.
(f)	Profession	The right to practise any profession, or to carry on any occupation, trade or business. It covers all means of earning a livelihood. The State may impose reasonable restrictions in the interests of the general public, may prescribe professional or technical qualifications, and may itself carry on any trade or business to the complete or partial exclusion of citizens.

Exam Focus

Three points about Article 19 attract questions with monotonous regularity. First, Article 19 is available only to citizens; a foreigner or a company cannot invoke it, though a shareholder who is a citizen may. Second, the right to strike is not a fundamental right, and it is not comprehended within either the freedom of speech or the freedom of association. Third, the freedoms under Article 19 stand automatically suspended when a Proclamation of Emergency is issued on the ground of war or external aggression — but not, since the 44th Amendment, on the ground of armed rebellion.

Article 20 — Protection in Respect of Conviction for Offences

Article 20 grants protection against arbitrary and excessive punishment to any person accused of an offence, whether a citizen, a foreigner or a legal person such as a company. It contains three distinct protections.

Protection	Content	Limits
No ex post facto law	No person shall be convicted of any offence except for the violation of a law in force at the time of the commission of the act charged, nor be subjected to a penalty greater than that prescribed by the law in force at the time of commission.	The prohibition applies only to criminal laws, not to civil or tax laws, and it does not prevent the retrospective grant of a BENEFIT such as a reduced sentence. It binds the courts in convicting and sentencing; it does not bar preventive detention or a demand for a tax with retrospective effect.
No double jeopardy	No person shall be prosecuted and punished for the same offence more than once.	Available only where there has been both prosecution AND punishment in a previous proceeding, and only in proceedings before a court of law or a judicial tribunal. It is therefore NOT available in departmental or administrative proceedings — an important point for disciplinary work.
No self-incrimination	No person accused of any offence shall be compelled to be a witness against himself.	Extends to both oral and documentary evidence, but does NOT extend to the compulsory production of material objects, to giving a thumb impression, specimen signature or blood specimen, or to the compulsory

Protection	Content	Limits
		exhibition of the body. It applies only to criminal proceedings and only to a person formally accused.

Currency Alert — the New Criminal Codes

Discussion of Article 20 must now be framed by reference to the Bharatiya Nyaya Sanhita, 2023 and the Bharatiya Nagarik Suraksha Sanhita, 2023, which replaced the Indian Penal Code, 1860 and the Code of Criminal Procedure, 1973 respectively with effect from 1 July 2024. The constitutional protections in Article 20 are unaffected in substance, but any answer that cites the IPC or the CrPC as the current law is citing a repealed statute.

Exam Focus — the Two Unsuspendable Articles

Articles 20 and 21 cannot be suspended even during a National Emergency. This is the effect of the 44th Amendment Act, 1978, which amended Article 359, and it reverses the position that had obtained under *ADM Jabalpur v. Shivakant Shukla* (1976), the Habeas Corpus case. Every other Fundamental Right may be rendered unenforceable during an Emergency; these two cannot.

Article 21 — Protection of Life and Personal Liberty

No person shall be deprived of his life or personal liberty except according to procedure established by law. The right is available to both citizens and non-citizens. Textually it is the shortest of the great guarantees; judicially it has become the widest.

In *A. K. Gopalan v. State of Madras* (1950) the Supreme Court gave Article 21 a narrow reading, holding that 'procedure established by law' meant any procedure laid down by a validly enacted statute, however unfair. That reading was abandoned in *Maneka Gandhi v. Union of India* (1978), where the Court held that the procedure must be right, just and fair, and not arbitrary, fanciful or oppressive — in effect importing the American concept of due process. On that foundation the Court has since read a long series of rights into Article 21.

Rights read into Article 21	Rights read into Article 21
1. To live with human dignity	14. To travel abroad
2. To a decent environment, including protection from pollution	15. Against bonded labour

Rights read into Article 21	Rights read into Article 21
3. To livelihood	16. Against custodial harassment
4. To privacy	17. To emergency medical aid
5. To shelter	18. To timely medical treatment in a Government hospital
6. To health	19. Not to be driven out of a State
7. To free education up to the age of fourteen	20. To a fair trial
8. To free legal aid	21. Of a prisoner to the necessities of life
9. Against solitary confinement	22. Of women to be treated with decency and dignity
10. To a speedy trial	23. Against public hanging
11. Against handcuffing	24. To a hearing
12. Against inhuman treatment	25. To information
13. Against delayed execution	26. To reputation

Landmark Case — Privacy

The right to privacy deserves separate treatment because of its importance and its date. In Justice K. S. Puttaswamy (Retd.) v. Union of India (2017) a Bench of NINE judges held unanimously that the right to privacy is a fundamental right protected as an intrinsic part of the right to life and personal liberty under Article 21 and as a part of the freedoms guaranteed by Part III. The judgment overruled the contrary holdings in M. P. Sharma (1954) and Kharak Singh (1962). Privacy is not absolute; an invasion must satisfy the tests of legality, legitimate State aim and proportionality. In a second Puttaswamy judgment in 2018 the Court applied these tests in upholding the Aadhaar scheme in part.

Article 21-A — Right to Elementary Education

- The State shall provide free and compulsory education to all children of the age of six to fourteen years in such manner as the State may by law determine.
- Article 21-A was inserted by the Constitution (Eighty-sixth Amendment) Act, 2002. The same amendment substituted Article 45 and added clause (k) to Article 51-A — so a single amendment touched Part III, Part IV and Part IV-A together, which is why it is examined so often.

- It makes only ELEMENTARY education a Fundamental Right. Higher education and professional education are not covered.
- In pursuance of Article 21-A, Parliament enacted the Right of Children to Free and Compulsory Education Act, 2009, which came into force on 1 April 2010.

Article 22 — Protection against Arrest and Detention

Article 22 grants protection to persons who are arrested or detained. Detention is of two kinds, and the Article deals with each separately. Punitive detention follows trial and conviction for an offence actually committed. Preventive detention is imposed without trial, on suspicion, to prevent a person from committing an offence in the future.

Part 1 — Rights of a person arrested under ordinary law	Part 2 — Safeguards for a person under preventive detention
The right to be informed of the grounds of arrest.	Detention may not ordinarily exceed THREE MONTHS unless an Advisory Board reports sufficient cause for extended detention.
The right to consult, and to be defended by, a legal practitioner of one's choice.	The grounds of detention must be communicated to the detenu, save that facts which the authority considers against the public interest to disclose need not be disclosed.
The right to be produced before a magistrate within twenty-four hours of arrest, excluding the time necessary for the journey.	The detenu must be afforded the earliest opportunity of making a representation against the detention order.
The right to be released after twenty-four hours unless the magistrate authorises further detention.	The Advisory Board is to consist of persons who are, or have been, or are qualified to be appointed as, judges of a High Court.
These four safeguards are NOT available to an enemy alien, nor to a person arrested or detained under a preventive detention law.	These safeguards ARE available to both citizens and aliens.

Currency Alert — the Two-Month Rule That Never Commenced

A very common error must be corrected here. Section 3 of the Constitution (Forty-fourth Amendment) Act, 1978 provided for reducing the period of detention without the opinion of an Advisory Board from three months to two months, and for a Board chaired by a sitting High Court judge on the recommendation of the Chief Justice. That section has NEVER been brought into force. The Central Government has not issued the notification required to commence it, and it remained un-notified as on July 2026 — more than forty-seven years after enactment. The operative period is

therefore still THREE MONTHS. Any statement that preventive detention is limited to two months is wrong.

The principal preventive detention laws in force include the National Security Act, 1980, the Conservation of Foreign Exchange and Prevention of Smuggling Activities Act, 1974, and various State public safety enactments. Article 22(7) authorises Parliament to prescribe the circumstances in which a person may be detained beyond three months without the opinion of an Advisory Board, the maximum period of detention, and the procedure to be followed by an Advisory Board.

2.5 Fundamental Right 3 – Right against Exploitation (Articles 23 to 24)

Article 23 – Prohibition of Traffic in Human Beings and Forced Labour

- Traffic in human beings, begar and other similar forms of forced labour are prohibited, and any contravention is an offence punishable in accordance with law.
- The right is available to both citizens and non-citizens, and it protects the individual not only against the State but also against private persons — one of the few Fundamental Rights with horizontal application.
- ‘Traffic in human beings’ has been held to include the selling and buying of men, women and children like goods; immoral traffic, including prostitution; the devadasi system; and slavery.
- ‘Begar’ means compulsory work without remuneration — the peculiarly Indian practice under which landholders compelled their tenants to render service without payment. ‘Other similar forms of forced labour’ covers bonded labour, and the payment of wages below the statutory minimum has been held to amount to forced labour.
- Parliament has enacted the Immoral Traffic (Prevention) Act, 1956 and the Bonded Labour System (Abolition) Act, 1976 in furtherance of this Article.
- Article 23 permits one exception: the State may impose compulsory service for public purposes — for instance compulsory military service or social service — provided it makes no discrimination on grounds only of religion, race, caste or class.

Article 24 – Prohibition of Employment of Children in Factories

- No child below the age of fourteen years shall be employed to work in any factory or mine or engaged in any other hazardous employment. Construction work and railway employment have been held to be hazardous for this purpose.

- The Article does not prohibit the employment of a child in harmless or innocent work.

Currency Alert — the 2016 Amendment

The legislation implementing Article 24 has been renamed and substantially widened, and most study material has not caught up. The Child Labour (Prohibition and Regulation) Amendment Act, 2016 received the assent of the President on 29 July 2016 and came into force on 1 September 2016. It made four changes of consequence.

First, the parent Act of 1986 was renamed the CHILD AND ADOLESCENT LABOUR (PROHIBITION AND REGULATION) ACT, 1986. Second, the employment of a child below fourteen is now prohibited in ALL occupations and processes, and not merely in the eighty-three hazardous occupations previously listed — the only exceptions being a child helping the family or a family enterprise after school hours or during vacations, and a child artist in the audio-visual entertainment industry. Third, a new category of 'adolescent' was created, meaning a person who has completed fourteen but not eighteen years, and the employment of adolescents in hazardous occupations and processes is prohibited. Fourth, the offence was made cognizable and the penalties were raised to imprisonment of six months to two years, or a fine of twenty thousand to fifty thousand rupees, or both.

The list of hazardous occupations was reduced from eighty-three to three broad heads — mines, inflammable substances or explosives, and hazardous processes under the Factories Act, 1948 — with power in the Central Government to add to or omit from the list.

The Commissions for Protection of Child Rights Act, 2005 and the Juvenile Justice (Care and Protection of Children) Act, 2015 supplement this framework. In 2006 the Government prohibited the employment of children as domestic servants and as workers in hotels, dhabas, restaurants, shops, factories, resorts, spas and tea shops — a step now subsumed within the general prohibition introduced in 2016.

2.6 Fundamental Right 4 — Freedom of Religion (Articles 25 to 28)

Article	Subject	Key provisions
25	Freedom of conscience and free profession, practice	All persons are equally entitled to freedom of conscience and to the right freely to profess, practise and propagate religion. The Article has four limbs: freedom of conscience, which is inner freedom to mould one's relation with God as one pleases; the right to

Article	Subject	Key provisions
	and propagation of religion	PROFESS, that is to declare one's beliefs openly; the right to PRACTISE, that is to perform religious worship, rituals and ceremonies; and the right to PROPAGATE, that is to transmit and disseminate one's religious tenets. The right to propagate does NOT include a right to convert another person forcibly. The right is subject to public order, morality, health and the other provisions of Part III. Explanation I provides that the wearing and carrying of kirpans is deemed to be included in the profession of the Sikh religion; Explanation II provides that the reference to Hindus includes persons professing the Sikh, Jaina or Buddhist religion.
26	Freedom to manage religious affairs	Every religious denomination, or any section of it, has the right to establish and maintain institutions for religious and charitable purposes; to manage its own affairs in matters of religion; to own and acquire movable and immovable property; and to administer such property in accordance with law. Unlike Article 25, which protects individual rights, Article 26 protects the collective rights of a denomination.
27	Freedom from payment of taxes for promotion of any particular religion	No person shall be compelled to pay any tax the proceeds of which are specifically appropriated for the promotion or maintenance of any particular religion or religious denomination. The State may not favour, patronise or support one religion over another. The Article prohibits a TAX, not a FEE; and taxes may lawfully be used for the promotion of all religions equally.
28	Freedom from attendance at religious instruction	Four kinds of institution are distinguished. In an institution wholly maintained out of State funds, religious instruction is entirely PROHIBITED. In an institution administered by the State but established under an endowment or trust requiring religious instruction, it is PERMITTED. In an institution merely recognised by the State, it is permitted on a VOLUNTARY basis. In an institution receiving State aid, it is likewise permitted on a VOLUNTARY basis. Where the person is a minor, the consent of the guardian is required.

2.7 Fundamental Right 5 – Cultural and Educational Rights (Articles 29 to 30)

Article 29 – Protection of the Interests of Minorities

- Any section of citizens residing in India having a distinct language, script or culture of its own has the right to conserve the same.
- No citizen shall be denied admission to any educational institution maintained by the State, or receiving aid out of State funds, on grounds only of religion, race, caste or language.

- The Supreme Court has held that the right to conserve one's language includes the right to agitate for the protection of that language, so that political speech in defence of a language is constitutionally protected.
- Although the marginal note speaks of minorities, the protection of Article 29 extends to ANY section of citizens — including a majority — having a distinct language, script or culture. This distinguishes it from Article 30.

Article 30 — Right of Minorities to Establish and Administer Educational Institutions

- All minorities, whether based on religion or on language, have the right to establish and administer educational institutions of their choice.
- Where the State compulsorily acquires the property of a minority educational institution, the law must fix an amount of compensation such that the right guaranteed by Article 30 is not restricted or abrogated. This clause was inserted by the 44th Amendment, 1978 — the same amendment that removed the right to property from Part III, so that minorities retained a protection which others lost.
- In granting aid to educational institutions the State shall not discriminate against any institution on the ground that it is under the management of a minority.
- The protection of Article 30 is confined to minorities alone — religious or linguistic — and does not extend to any section of citizens as under Article 29. The term 'minority' is nowhere defined in the Constitution.
- The right includes the right of a minority to impart education to its children in its own language.
- Minority educational institutions are of three kinds: those that seek both recognition and aid from the State; those that seek recognition only; and those that seek neither. The extent of permissible State regulation varies accordingly, being greatest in the first and least in the third.

Exam Focus

Note the relationship between Article 30 and the reservation provisions. Article 15(5), inserted by the 93rd Amendment, and Article 15(6), inserted by the 103rd Amendment, both expressly EXCLUDE minority educational institutions referred to in Article 30(1) from their operation. Minority institutions are therefore outside both the socially-and-educationally-backward-classes reservation and the economically-weaker-sections reservation in admissions.

2.8 Fundamental Right 6 – Right to Constitutional Remedies (Article 32)

Quick Concept

Dr. B. R. Ambedkar described Article 32 as 'the very soul of the Constitution and the very heart of it'. A right without a remedy is no right at all, and Article 32 supplies the remedy. It guarantees the right to move the Supreme Court by appropriate proceedings for the enforcement of the rights conferred by Part III, and empowers the Supreme Court to issue directions, orders or writs, including the five prerogative writs, for that purpose. Because the remedy is itself a Fundamental Right, the Supreme Court cannot refuse to entertain a petition properly brought under Article 32.

Article 32 has four elements: the right to move the Supreme Court is guaranteed; the Supreme Court has power to issue directions, orders and writs of five kinds; Parliament may empower any other court to issue such writs without prejudice to the powers of the Supreme Court; and the right guaranteed by Article 32 may not be suspended except as otherwise provided by the Constitution, that is, during a Proclamation of Emergency under Article 359.

The Five Writs

Writ	Literal meaning	Purpose	Against whom it lies, and when it does not
Habeas Corpus	'To have the body of'	An order calling upon a person who has detained another to produce that person before the court and to justify the detention. It is the great bulwark of personal liberty against arbitrary detention.	Lies against BOTH public authorities AND private individuals. Not issued where the detention is lawful, where the proceeding is for contempt of a legislature or a court, where the detention is by a competent court, or where the detention is outside the jurisdiction of the court.
Mandamus	'We command'	A command to a public official to perform an official duty which he has failed or refused to perform. It compels ACTION.	Lies against a public body, a corporation, an inferior court, a tribunal or a Government. NOT against a private individual or body, to enforce a departmental instruction lacking statutory force, where the duty is discretionary and not mandatory, to enforce a contractual obligation, against the President or a Governor, or against

Writ	Literal meaning	Purpose	Against whom it lies, and when it does not
			the Chief Justice of a High Court acting in a judicial capacity.
Prohibition	'To forbid'	Issued by a higher court to a lower court or tribunal to prevent it from exceeding its jurisdiction or usurping a jurisdiction it does not possess. It compels INACTION, and is thus the opposite of mandamus.	Lies ONLY against judicial and quasi-judicial authorities. NOT against administrative authorities, legislative bodies or private individuals or bodies. It is preventive only, and can be issued only while the proceeding is pending.
Certiorari	'To be certified' or 'to be informed'	Issued by a higher court to a lower court or tribunal either to transfer a pending case to itself or to quash an order already passed. It is both PREVENTIVE and CURATIVE, whereas prohibition is preventive only.	Lies against judicial and quasi-judicial authorities and, since a ruling of 1991, also against ADMINISTRATIVE authorities affecting the rights of individuals. NOT against legislative bodies or private individuals or bodies.
Quo Warranto	'By what authority or warrant'	An enquiry into the legality of a person's claim to a public office, preventing the illegal usurpation of public office.	Lies only in respect of a substantive public office of a permanent character created by statute or by the Constitution. NOT in respect of a ministerial or a private office. Uniquely among the writs, it may be sought by ANY interested person and not merely by an aggrieved person.

Memory Trick

Five writs = HMPCQ — Habeas corpus, Mandamus, Prohibition, Certiorari, Quo warranto. The device is borrowed from English law. To recall which writ compels which: Mandamus makes you MOVE; Prohibition makes you STOP.

Exam Focus — Article 32 versus Article 226

Compare the writ jurisdictions carefully, because the comparison is examined every year. The Supreme Court may issue writs under Article 32 ONLY for the enforcement of Fundamental Rights. A High Court may issue writs under Article 226 for the enforcement of Fundamental Rights AND for any other purpose — that is, for the

enforcement of an ordinary legal right. The High Court's writ jurisdiction is therefore WIDER in scope. The Supreme Court's jurisdiction, however, is territorially wider, extending over the whole of India, whereas a High Court's writ runs within its territorial jurisdiction and to authorities outside it only if the cause of action arises within. Further, Article 32 is itself a Fundamental Right so the Supreme Court cannot refuse relief, while Article 226 is a constitutional right which the High Court exercises as a matter of discretion.

2.9 Articles 33, 34 and 35 — Powers of Parliament

Article 33 — Modification of Fundamental Rights for the Armed Forces

- Parliament — and Parliament alone, not a State Legislature — may by law restrict or abrogate the Fundamental Rights of members of the armed forces, the paramilitary forces, the police forces, intelligence agencies and analogous forces.
- The object is to ensure the proper discharge of their duties and the maintenance of discipline among them.
- A law made under Article 33 cannot be challenged in any court on the ground that it contravenes a Fundamental Right.
- Such a law may also exclude court martials from the writ jurisdiction of the Supreme Court and the High Courts in respect of the enforcement of Fundamental Rights.

Article 34 — Restriction on Fundamental Rights while Martial Law Is in Force

- Where martial law is in force in any area, Parliament may by law indemnify any person in the service of the Union or of a State, or any other person, in respect of any act done in connection with the maintenance or restoration of order in that area.
- Parliament may also validate any sentence passed, punishment inflicted, forfeiture ordered or other act done under martial law.
- The expression 'martial law' is not defined anywhere in the Constitution. It is distinct from a National Emergency: martial law affects only Fundamental Rights and only in the area concerned, suspends the ordinary courts there, and is imposed to restore breakdown of law and order, whereas a National Emergency operates throughout the country or a part of it, affects the Centre-State relationship, and never suspends the ordinary courts.

Article 35 — Legislation to Give Effect to Certain Fundamental Rights

- Only Parliament, and not a State Legislature, has power to make laws with respect to certain specified matters in Part III — notably prescribing residence as a qualification for employment under Article 16(3), the restriction of Fundamental Rights of the forces under Article 33, indemnity in respect of martial law under Article 34, and prescribing punishment for offences under Articles 17 and 23.
- The object is to secure uniformity throughout India in the implementation of these rights, so that the content of a Fundamental Right does not vary from State to State.

2.10 Which Rights Are Available to Whom

Available ONLY to citizens	Available to ALL persons — citizens and foreigners alike (excepting enemy aliens)
Article 15 — prohibition of discrimination on grounds of religion, race, caste, sex or place of birth	Article 14 — equality before the law and equal protection of the laws
Article 16 — equality of opportunity in matters of public employment	Article 20 — protection in respect of conviction for offences
Article 19 — the six freedoms of speech, assembly, association, movement, residence and profession	Article 21 — protection of life and personal liberty
Article 29 — protection of the language, script and culture of any section of citizens	Article 21-A — right to elementary education
Article 30 — right of minorities to establish and administer educational institutions	Article 22 — protection against arrest and detention in certain cases
	Article 23 — prohibition of traffic in human beings and forced labour
	Article 24 — prohibition of employment of children in factories and hazardous work
	Articles 25 to 28 — freedom of religion

2.11 Part 2 — Master Summary

Aspect	Position
Part and Articles	Part III, Articles 12 to 35
Inspired by	The Bill of Rights, Constitution of the United States of America

Aspect	Position
Described as	The Magna Carta of India
Original number of rights	Seven
Present number of rights	Six — the right to property was deleted by the 44th Amendment Act, 1978
Right to property today	A constitutional and legal right under Article 300-A in Part XII — not enforceable under Article 32
Definition of 'the State'	Article 12 — Government and Parliament of India, Government and Legislature of each State, all local authorities, and all other authorities
Judicial review of laws	Article 13 — laws inconsistent with Fundamental Rights are void to the extent of the inconsistency
Article 32 described as	The 'heart and soul' of the Constitution — Dr. B. R. Ambedkar
The five writs	Habeas corpus, Mandamus, Prohibition, Certiorari, Quo warranto
Writs issued by	The Supreme Court under Article 32 and the High Courts under Article 226
Cannot be suspended even in Emergency	Articles 20 and 21 — by virtue of the 44th Amendment Act, 1978
EWS reservation	Articles 15(6) and 16(6), inserted by the 103rd Amendment Act, 2019; upheld 3:2 in Janhit Abhiyan v. Union of India (2022)
Right to privacy	Justice K. S. Puttaswamy v. Union of India (2017) — nine judges, unanimous; part of Article 21
Preventive detention period	Three months. Section 3 of the 44th Amendment reducing it to two months has never been brought into force
Article 33	Parliament alone may restrict or abrogate Fundamental Rights of the armed and analogous forces
Article 34	Parliament may indemnify acts done under martial law
Article 35	Only Parliament may legislate on certain Part III matters, to secure uniformity

Part 3**Directive Principles & Fundamental Duties**

Part IV — Articles 36 to 51 · Part IV-A — Article 51-A

3.1 Directive Principles of State Policy — Nature and Origin**Quick Concept**

The Directive Principles of State Policy are enumerated in Part IV of the Constitution, Articles 36 to 51. The framers borrowed the idea from the Constitution of Ireland of 1937, which had in turn taken it from the Constitution of Spain. The Directive Principles are the positive obligations of the State — the instructions given by the Constitution to every future Government about the kind of society it is to build. They are not enforceable in a court of law, but they are declared by Article 37 to be fundamental in the governance of the country, and it shall be the duty of the State to apply them in making laws.

- Dr. B. R. Ambedkar described the Directive Principles as a ‘novel feature’ of the Indian Constitution.
- Granville Austin described the Directive Principles together with the Fundamental Rights as the ‘conscience of the Constitution’.
- The Directive Principles together with the Fundamental Rights contain the philosophy of the Constitution and constitute its soul.
- Article 36 defines ‘the State’ for the purposes of Part IV in the same terms as Article 12 does for Part III, unless the context otherwise requires.
- Article 37 makes two statements which must be read together: the provisions of Part IV shall not be enforceable by any court, and yet the principles are fundamental in the governance of the country and it shall be the duty of the State to apply them in making laws. The first limb denies a remedy; the second imposes an obligation.

Memory Trick

For the origin and character of the Directive Principles, remember IRISH DNA — borrowed from the IRISH Constitution of 1937, Non-justiciable, and a Duty of the State to Apply them.

3.2 The Three Categories of Directive Principles

The Constitution itself contains no classification of the Directive Principles. On the basis of their content and direction, however, they are conventionally divided into three broad categories — socialistic, Gandhian, and liberal-intellectual. A few Articles appear under more than one head, and the examiner is aware of this; the classification is a convenience, not a rule of law.

Socialistic Principles

These reflect the ideology of socialism and lay down the framework of a democratic socialist State, aiming at the provision of social and economic justice.

Article	Directive to the State
38	To promote the welfare of the people by securing a social order permeated by justice — social, economic and political — and to minimise inequalities in income, status, facilities and opportunities
39	To secure: (a) adequate means of livelihood for all citizens; (b) equitable distribution of the material resources of the community for the common good; (c) prevention of concentration of wealth and means of production; (d) equal pay for equal work for men and women; (e) protection of the health and strength of workers and children against abuse; (f) opportunities for the healthy development of children
39-A	To promote equal justice and to provide free legal aid to the poor
41	To secure the right to work, to education and to public assistance in cases of unemployment, old age, sickness and disablement
42	To make provision for just and humane conditions of work and for maternity relief
43	To secure a living wage, a decent standard of life and social and cultural opportunities for all workers
43-A	To take steps to secure the participation of workers in the management of industries
47	To raise the level of nutrition and the standard of living of the people and to improve public health

Currency Alert — Article 39(b) Narrowed

Article 39(b) received authoritative reinterpretation in November 2024 and older material on it is now unsafe. In *Property Owners Association v. State of Maharashtra*, decided on 5 November 2024, a Bench of NINE judges held by a majority of 7:2 that not every privately owned resource constitutes a 'material resource of the community' within the meaning of Article 39(b).

The Court rejected the expansive view taken by Justice Krishna Iyer in a minority opinion in *State of Karnataka v. Ranganatha Reddy* (1978) and followed in *Sanjeev Coke Manufacturing Co. v. Bharat Coking Coal Ltd.* (1983), and overruled *Sanjeev Coke* on the point. The majority held that a privately owned resource may fall within Article 39(b), but only where it satisfies the tests of being both a 'material resource' and one 'of the community' — the Court instancing privately held forests, ponds, wetlands, spectrum, natural gas, mines and minerals as resources that could qualify. The judgment also held that Article 31-C, as upheld in *Kesavananda Bharati*, survives in the Constitution notwithstanding the striking down of the 42nd Amendment's expansion of it in *Minerva Mills*. The Bench was led by Chief Justice D. Y. Chandrachud, with Justice Nagarathna partly concurring and Justice Dhulia dissenting.

Gandhian Principles

These embody the programme of reconstruction enunciated by Mahatma Gandhi during the national movement, which the framers considered it necessary to incorporate so that it should not be forgotten after Independence.

Article	Directive to the State
40	To organise village panchayats and endow them with such powers and authority as may be necessary to enable them to function as units of self-government
43	To promote cottage industries on an individual or co-operative basis in rural areas
43-B	To promote the voluntary formation, autonomous functioning, democratic control and professional management of co-operative societies
46	To promote the educational and economic interests of the Scheduled Castes, the Scheduled Tribes and other weaker sections, and to protect them from social injustice and all forms of exploitation
47	To prohibit the consumption of intoxicating drinks and of drugs injurious to health, except for medicinal purposes
48	To prohibit the slaughter of cows, calves and other milch and draught cattle, and to improve their breeds

Liberal–Intellectual Principles

These represent the ideology of liberalism and are concerned with the modernisation of the State and of society.

Article	Directive to the State
44	To secure for all citizens a uniform civil code throughout the territory of India
45	To provide early childhood care and education for all children until they complete the age of six years
48	To organise agriculture and animal husbandry on modern and scientific lines
48-A	To protect and improve the environment and to safeguard forests and wild life
49	To protect every monument, place or object of artistic or historic interest which has been declared to be of national importance
50	To separate the judiciary from the executive in the public services of the State
51	To promote international peace and security; to maintain just and honourable relations between nations; to foster respect for international law and treaty obligations; and to encourage the settlement of international disputes by arbitration

3.3 Directive Principles Added by Amendment

Four Directive Principles were added and two were altered after the Constitution came into force. This is one of the most reliably examined tables in the whole subject and should be memorised exactly.

Amendment	Year	Change made
42nd	1976	Added FOUR new Directive Principles — Article 39(f), securing opportunities for the healthy development of children; Article 39-A, promoting equal justice and free legal aid; Article 43-A, securing the participation of workers in the management of industries; and Article 48-A, protecting and improving the environment and safeguarding forests and wild life
44th	1978	Added to Article 38 the duty to minimise inequalities in income, status, facilities and opportunities
86th	2002	Changed the subject-matter of Article 45. Article 45 originally directed the State to provide free and compulsory education for all children until the age of fourteen; it now directs the State to provide early childhood care and education until the age of six. Elementary education for children of six to fourteen simultaneously became a Fundamental Right under Article 21-A
97th	2011	Added Article 43-B, on the promotion of co-operative societies

Exam Focus

A refinement on the 97th Amendment is worth carrying into the examination. In *Union of India v. Rajendra N. Shah* (2021) the Supreme Court struck down Part IX-B of the Constitution, which the same 97th Amendment had inserted, in so far as it applied to co-operative societies operating within a single State, on the ground that it had been passed without ratification by the State Legislatures as required by the proviso to Article 368(2). Part IX-B survives in relation to multi-State co-operative societies. Article 43-B, being a Directive Principle in Part IV and not part of Part IX-B, was NOT struck down and remains in force.

3.4 Fundamental Rights Compared with Directive Principles

This comparison is among the most frequently set questions in the Constitution portion of the LDCE syllabus, in both the objective and the descriptive form. Learn it as a table and be able to write it as prose.

#	Fundamental Rights	Directive Principles of State Policy
1	Negative in character — they prohibit the State from doing certain things	Positive in character — they require the State to do certain things
2	Justiciable — legally enforceable by the courts on their violation	Non-justiciable — not legally enforceable by the courts on their violation
3	Aim at establishing political democracy in the country	Aim at establishing social and economic democracy in the country
4	Have legal sanctions behind them	Have moral and political sanctions behind them
5	Promote the welfare of the individual, and are therefore personal and individualistic	Promote the welfare of the community, and are therefore sociitarian and socialistic
6	Do not require legislation for their implementation; they are automatically enforced	Require legislation for their implementation; they are not automatically enforced
7	A court is bound to declare a law violative of a Fundamental Right unconstitutional and invalid	A court cannot declare a law unconstitutional merely because it violates a Directive Principle; but it may uphold a law enacted to give effect to a directive as reasonable

The Long Argument between Parts III and IV

The relationship between the two Parts has been worked out through a long line of cases. In *Champakam Dorairajan* (1951) the Court held that in a conflict the

Fundamental Rights would prevail and that the Directive Principles must conform to and run subsidiary to them. In *Golak Nath* (1967) Parliament was held to lack power to abridge Fundamental Rights. *Kesavananda Bharati* (1973) established the basic structure doctrine. *Minerva Mills* (1980) held that the harmony and balance between Fundamental Rights and Directive Principles is itself a basic feature of the Constitution, and struck down the part of Article 31-C inserted by the 42nd Amendment which had given blanket primacy to all Directive Principles. The settled position is one of harmonious construction: neither Part is subordinate to the other, and each is to be read so as to give effect to the other so far as possible.

3.5 Fundamental Duties — Part IV-A, Article 51-A

Quick Concept

The Constitution as originally enacted contained no Fundamental Duties. They were added by the Constitution (Forty-second Amendment) Act, 1976 on the recommendation of the Sardar Swaran Singh Committee, which had been constituted in 1976 to study the question. The amendment inserted a new Part IV-A containing a single Article, Article 51-A, which originally set out TEN duties. An eleventh was added by the Constitution (Eighty-sixth Amendment) Act, 2002. The idea was inspired by the Constitution of the erstwhile Union of Soviet Socialist Republics; the Japanese Constitution is the only other democratic Constitution commonly cited as containing a list of duties.

- The need for Fundamental Duties was felt during the Internal Emergency of 1975 to 1977.
- Like the Directive Principles, the Fundamental Duties are non-justiciable. The Constitution provides neither for their direct enforcement nor for any penalty or punishment for failure to fulfil them.
- They serve as a constant reminder to citizens that while the Constitution confers rights upon them, it also expects them to observe certain basic norms of democratic conduct.
- They are confined to CITIZENS and do not extend to foreigners.

The Eleven Fundamental Duties

It shall be the duty of every citizen of India —

Clause	Duty
(a)	To abide by the Constitution and respect its ideals and institutions, the National Flag and the National Anthem

Clause	Duty
(b)	To cherish and follow the noble ideals which inspired the national struggle for freedom
(c)	To uphold and protect the sovereignty, unity and integrity of India
(d)	To defend the country and render national service when called upon to do so
(e)	To promote harmony and the spirit of common brotherhood amongst all the people of India transcending religious, linguistic and regional or sectional diversities, and to renounce practices derogatory to the dignity of women
(f)	To value and preserve the rich heritage of the country's composite culture
(g)	To protect and improve the natural environment including forests, lakes, rivers and wild life, and to have compassion for living creatures
(h)	To develop the scientific temper, humanism and the spirit of inquiry and reform
(i)	To safeguard public property and to abjure violence
(j)	To strive towards excellence in all spheres of individual and collective activity so that the nation constantly rises to higher levels of endeavour and achievement
(k)	To provide opportunities for education to his child or, as the case may be, ward between the age of six and fourteen years — inserted by the 86th Amendment Act, 2002

Exam Focus — What Was Rejected

The Swaran Singh Committee had recommended EIGHT duties; the Government accepted the recommendation but incorporated TEN. Three of the Committee's recommendations were NOT accepted: that Parliament should be empowered to impose a penalty or punishment for non-compliance with any duty; that no law imposing such a penalty should be called in question in any court on the ground of infringement of any Fundamental Right or of inconsistency with any other constitutional provision; and that the duty to pay taxes should also be a Fundamental Duty of the citizen. The last of these is a favourite objective question — paying taxes is NOT a Fundamental Duty.

Implementation — the Verma Committee, 1999

The Justice J. S. Verma Committee on the Operationalisation of Fundamental Duties, which reported in 1999, identified the existing legal provisions through which several of the Fundamental Duties are already given practical effect. The list is examinable as a list.

- The Prevention of Insults to National Honour Act, 1971, which prevents disrespect to the Constitution of India, the National Flag and the National Anthem.

- The general criminal law, which provides punishment for promoting enmity between different sections of people on grounds of language, race, place of birth or religion.
- The Protection of Civil Rights Act, 1955, which provides punishment for offences relating to caste and religion.
- The penal law, which declares imputations and assertions prejudicial to national integration to be punishable offences. The relevant provisions are now found in the Bharatiya Nyaya Sanhita, 2023, which replaced the Indian Penal Code, 1860 with effect from 1 July 2024.
- The Unlawful Activities (Prevention) Act, 1967, under which a communal organisation may be declared an unlawful association.
- The Representation of the People Act, 1951, which provides for the disqualification of members found guilty of corrupt practices such as soliciting votes on the ground of religion or promoting enmity between classes of citizens.
- The Wild Life (Protection) Act, 1972, which prohibits trade in rare and endangered species.
- The Forest (Conservation) Act, 1980, which checks indiscriminate deforestation and the diversion of forest land to non-forest uses.

Note in passing that the Prevention of Insults to National Honour Act, 1971 was itself the subject of an amending Bill introduced in the Rajya Sabha during the Monsoon Session of 2026. Candidates should verify its status before the examination; the Act as it stood before that Bill remains the law until the Bill is enacted and brought into force.

3.6 Part 3 — Master Summary

Aspect	Position
DPSPs — Part and Articles	Part IV, Articles 36 to 51
DPSPs — borrowed from	The Constitution of Ireland, 1937, which took the idea from Spain
DPSPs — described as	‘Novel features’ by Dr. B. R. Ambedkar; the ‘conscience of the Constitution’, with the Fundamental Rights, by Granville Austin
DPSPs — nature	Non-justiciable, but fundamental in the governance of the country (Article 37)
DPSPs — three categories	Socialistic, Gandhian, and liberal–intellectual

Aspect	Position
New DPSPs by the 42nd Amendment	Articles 39(f), 39-A, 43-A and 48-A — four in all
New DPSP by the 97th Amendment	Article 43-B — co-operative societies
Article 39(b) — current reading	Property Owners Association v. State of Maharashtra (2024), nine judges, 7:2 — not all private property is a material resource of the community
Duties — Part and Article	Part IV-A, Article 51-A
Duties — added by	The 42nd Amendment Act, 1976
Duties — on the recommendation of	The Sardar Swaran Singh Committee, 1976
Duties — inspired by	The Constitution of the erstwhile USSR
Duties — original number	Ten
Duties — present number	Eleven; the eleventh, clause (k), was added by the 86th Amendment Act, 2002
Duties — nature	Non-justiciable; no direct enforcement and no penalty prescribed by the Constitution
Duties — Verma Committee, 1999	Identified eight existing enactments already implementing several of the duties

Memory Trick

42–86–97 — the 42nd Amendment gave ten Duties and four new Directive Principles; the 86th gave the eleventh Duty, Article 21-A and the new Article 45; the 97th gave Article 43-B on co-operative societies.

Part 4**The Supreme Court of India***Chapter IV of Part V of the Constitution — Articles 124 to 147***Quick Concept**

Unlike the United States, which has a dual system of federal and State courts, the Indian Constitution establishes a single integrated judicial system with the Supreme Court at the apex, the High Courts below it, and a hierarchy of subordinate courts below them. A single system of courts enforces both Union law and State law. Articles 124 to 147 deal with the organisation, independence, jurisdiction, powers and procedure of the Supreme Court.

- The Supreme Court of India was inaugurated on 28 January 1950. The first Chief Justice of India was Harilal J. Kania.
- It succeeded the Federal Court of India, which had been established under the Government of India Act, 1935. The jurisdiction of the Supreme Court is, however, far wider than that of its predecessor, and it also took over the appellate jurisdiction formerly exercised by the Judicial Committee of the Privy Council.
- Alladi Krishnaswami Ayyar, a member of the Drafting Committee, observed that the Supreme Court of India has more powers than any other Supreme Court in any part of the world.
- Article 130 provides that the seat of the Supreme Court shall be Delhi, and that the Chief Justice of India may, with the approval of the President, appoint any other place or places as the seat of the Court.

4.1 Organisation of the Supreme Court — Article 124

Article 124(1) provides that there shall be a Supreme Court of India consisting of a Chief Justice of India and, until Parliament by law prescribes a larger number, of not more than seven other judges. The original constitutional strength was therefore eight in all. Parliament has increased the number repeatedly by ordinary law under this power, most recently in 2026.

Currency Alert — Strength of the Supreme Court**The sanctioned strength is now THIRTY-EIGHT, not thirty-four.**

On 5 May 2026 the Union Cabinet approved a proposal to increase the number of judges of the Supreme Court, other than the Chief Justice of India, from thirty-three to thirty-seven. Because Parliament was not then in session, the President promulgated the Supreme Court (Number of Judges) Amendment Ordinance, 2026 (Ordinance 1 of 2026) on 16 May 2026 under Article 123, amending section 2 of the Supreme Court (Number of Judges) Act, 1956 by substituting 'thirty-seven' for 'thirty-three'. The sanctioned strength of the Court accordingly became THIRTY-EIGHT judges including the Chief Justice of India, and appointments have been made against the enhanced strength.

The Supreme Court (Number of Judges) Amendment Bill, 2026 (Bill No. 128 of 2026) was introduced in the Lok Sabha by the Minister of Law and Justice on 20 July 2026 to replace that Ordinance, and was listed for consideration and passing on 22 July 2026 together with a statutory resolution disapproving the Ordinance. As on 24 July 2026 the Bill had not completed its passage through both Houses.

CANDIDATES MUST NOTE TWO THINGS. First, the operative sanctioned strength today is thirty-eight, because an Ordinance has the same force and effect as an Act of Parliament while it subsists. Second, an Ordinance ceases to operate at the expiration of six weeks from the reassembly of Parliament unless replaced by an Act, so the position should be re-verified shortly before the examination. If the Bill has by then been passed, the correct citation becomes the Supreme Court (Number of Judges) Amendment Act, 2026.

How the Strength Has Grown

Year	Instrument	Judges excluding the CJI	Total including the CJI
1950	Constitution, Article 124(1)	7	8
1956	Supreme Court (Number of Judges) Act, 1956	10	11
1960	Amendment Act	13	14
1977	Amendment Act	17	18
1986	Amendment Act	25	26

Year	Instrument	Judges excluding the CJI	Total including the CJI
2009	Supreme Court (Number of Judges) Amendment Act, 2008	30	31
2019	Supreme Court (Number of Judges) Amendment Act, 2019 (Act 37 of 2019), 9 August 2019	33	34
2026	Supreme Court (Number of Judges) Amendment Ordinance, 2026, 16 May 2026 — replacement Bill pending	37	38

Exam Focus

Contrast the two Courts on this point, because it is a classic comparison. The sanctioned strength of the SUPREME COURT can be altered only by an Act of Parliament, under Article 124(1). The sanctioned strength of a HIGH COURT can be altered by the PRESIDENT by executive order, under Article 216, because the Constitution fixes no number for a High Court and leaves it to the President to appoint such judges as he may from time to time deem it necessary to appoint.

Conditions of Office of a Judge of the Supreme Court

Aspect	Provision
Appointment Article 124(2)	Every judge is appointed by the President by warrant under his hand and seal. In appointing the Chief Justice of India the President consults such judges of the Supreme Court and of the High Courts as he may deem necessary. In appointing any other judge, consultation with the Chief Justice of India is obligatory. The word 'consultation' has been judicially construed to mean concurrence — see the Collegium, below.
Qualifications Article 124(3)	A person must be a citizen of India, AND must satisfy one of three further conditions: (a) he has been a judge of a High Court, or of two or more such courts in succession, for at least FIVE years; or (b) he has been an advocate of a High Court, or of two or more such courts in succession, for at least TEN years; or (c) he is, in the opinion of the President, a distinguished jurist. No minimum age is prescribed, and no minimum period of service on the Supreme Court is prescribed.
Oath Article 124(6)	Before entering upon office a judge makes and subscribes an oath or affirmation before the President or a person appointed by him, in which he swears to bear true faith and allegiance to the Constitution of India as by law established; to uphold the sovereignty and integrity of India; to duly and faithfully and to the best of his ability, knowledge and judgment perform the duties of his office

Aspect	Provision
Tenure Article 124(2)	without fear or favour, affection or ill-will; and to uphold the Constitution and the laws. No fixed term is prescribed. A judge holds office until he attains the age of SIXTY-FIVE years; may resign by writing under his hand addressed to the President; and may be removed by the President on the recommendation of Parliament. Any question as to the age of a judge is determined by the President after consultation with the Chief Justice of India, and the President's decision is final.
Removal Article 124(4)	A judge may be removed only by an order of the President passed after an address by each House of Parliament, supported by a special majority, has been presented to the President in the same session. The only two grounds are PROVED MISBEHAVIOUR and INCAPACITY. The procedure is regulated by the Judges (Inquiry) Act, 1968.
Salaries Article 125	Determined by Parliament. The Chief Justice of India draws Rs. 2,80,000 per month and every other judge Rs. 2,50,000 per month, with effect from 1 January 2016, under the High Court and Supreme Court Judges (Salaries and Conditions of Service) Amendment Act, 2018. Judges are additionally entitled to house rent allowance, furnishing allowance, sumptuary allowance and other benefits. Salaries, allowances and privileges may not be varied to a judge's disadvantage after appointment, save during a Financial Emergency under Article 360.

Exam Focus

Note two points about the qualifications that are commonly missed. First, a distinguished jurist has never in fact been appointed to the Supreme Court, though the provision has existed since 1950. Second, unlike a High Court judge, a Supreme Court judge need not have held judicial office — five years as a High Court judge or ten years at the Bar suffices. The salary figures given above were verified in July 2026 and had not been revised since the 2018 Act took effect retrospectively from 1 January 2016.

4.2 Removal of a Judge — the Impeachment Process

The process is often loosely called impeachment, though the Constitution does not use that word for judges. It is regulated by Article 124(4) and (5) read with the Judges (Inquiry) Act, 1968, and proceeds in six stages.

1. A removal motion signed by at least ONE HUNDRED members of the Lok Sabha, or by at least FIFTY members of the Rajya Sabha, is given to the Speaker or the Chairman as the case may be.

2. The Speaker or the Chairman may admit the motion or refuse to admit it. The discretion at this stage is his alone.
3. If the motion is admitted, a committee of three is constituted to investigate the charges. It consists of the Chief Justice of India or a judge of the Supreme Court, the Chief Justice of a High Court, and a distinguished jurist.
4. If the committee finds the judge guilty of misbehaviour or of suffering from incapacity, the House may take up the motion for consideration.
5. The motion must be passed by EACH House by a special majority — that is, by a majority of the total membership of that House AND by a majority of not less than two-thirds of the members of that House present and voting. Both Houses must pass it in the SAME SESSION.
6. An address is then presented to the President in the same session, and the President passes an order removing the judge.

Exam Focus

No judge of the Supreme Court has ever been removed under this procedure. The only instance in which the process advanced to the floor of the House was that of Justice V. Ramaswami between 1991 and 1993: the inquiry committee found him guilty of misbehaviour, but the motion was defeated in the Lok Sabha because the ruling party abstained and the special majority was not obtained. Note also that the two grounds — proved misbehaviour and incapacity — are exhaustive; a judge cannot be removed for an unpopular judgment.

4.3 Acting Chief Justice, Ad Hoc Judges and Retired Judges

Provision	Content
Acting Chief Justice Article 126	The President may appoint a judge of the Supreme Court as Acting Chief Justice of India when the office of Chief Justice is vacant, or when the Chief Justice is by reason of absence or otherwise unable to perform the duties of his office.
Ad hoc judge Article 127	Where there is a lack of quorum of permanent judges to hold or continue a session of the Court, the Chief Justice of India may, with the previous consent of the President and after consultation with the Chief Justice of the High Court concerned, request a judge of a High Court duly qualified for appointment as a judge of the Supreme Court to attend sittings of the Supreme Court as an ad hoc judge for such period as may be necessary. It is the duty of the judge so

Provision	Content
Retired judges Article 128	designated, in priority to his other duties, to attend the sittings of the Supreme Court. The Chief Justice of India may at any time, with the previous consent of the President, request any person who has held the office of a judge of the Supreme Court, or of the Federal Court, or of a High Court and is duly qualified for appointment as a judge of the Supreme Court, to sit and act as a judge of the Supreme Court. Such a person is entitled to such allowances as the President may determine, and while so sitting has all the jurisdiction, powers and privileges of a judge of the Supreme Court — but is not otherwise deemed to be a judge of that Court. His consent is necessary.

4.4 Appointment of Judges — the Collegium and the NJAC

Restored Topic

This topic was omitted entirely from the earlier edition of these notes. It is one of the most frequently examined aspects of the higher judiciary and its omission was a serious gap. What follows is the settled position as on July 2026.

Article 124(2) requires the President to appoint judges of the Supreme Court ‘after consultation with’ the Chief Justice of India and such other judges as he may deem necessary. What that word means has been determined through a series of decisions known as the Judges Cases.

Case	Year	What it decided
First Judges Case S. P. Gupta v. Union of India	1981	Held that ‘consultation’ does not mean concurrence. The opinion of the Chief Justice of India was not binding on the President, and primacy in appointments therefore lay with the executive.
Second Judges Case Supreme Court Advocates-on-Record Association v. Union of India	1993	Overruled the first. Held that ‘consultation’ means CONCURRENCE, so that the advice tendered by the Chief Justice of India is binding on the President. The Chief Justice was to form his opinion in consultation with his two senior-most colleagues. This is the origin of the Collegium.
Third Judges Case In re Presidential Reference	1998	Delivered on a reference by the President under Article 143. Expanded the Collegium for Supreme Court appointments to the Chief Justice of India and his FOUR senior-most colleagues, and held that a recommendation made without complying with the prescribed consultative process is not binding on the Government.

Case	Year	What it decided
Fourth Judges Case Supreme Court Advocates-on-Record Association v. Union of India	2015	Struck down the Constitution (Ninety-ninth Amendment) Act, 2014 and the National Judicial Appointments Commission Act, 2014 as unconstitutional and void, holding that they violated the independence of the judiciary, which is part of the basic structure. The Collegium system was thereby revived and continues to operate.

Exam Focus

Learn the composition of each Collegium separately, because the two differ. For an appointment to the SUPREME COURT, the Collegium consists of the Chief Justice of India and the FOUR senior-most judges of the Supreme Court. For an appointment to a HIGH COURT, the Collegium consists of the Chief Justice of India and the TWO senior-most judges of the Supreme Court, and the recommendation originates with the Chief Justice of the High Court concerned acting with his two senior-most colleagues. The Collegium is nowhere mentioned in the Constitution; it is entirely a judicial construction of the word 'consultation'.

4.5 Independence of the Supreme Court – the Ten Safeguards

The Supreme Court is the federal court, the highest court of appeal, the guarantor of Fundamental Rights and the guardian of the Constitution. Its independence from the executive and the legislature is essential to the discharge of those functions, and the Constitution secures it in ten ways.

#	Safeguard	How it operates
1	Mode of appointment	Judges are appointed by the President in consultation with members of the judiciary itself, so that appointment does not rest on the unfettered discretion of the executive
2	Security of tenure	A judge holds office until sixty-five and is not removable at the pleasure of the President, but only by the elaborate parliamentary process under Article 124(4)
3	Fixed service conditions	Salaries, allowances, privileges, leave and pension are determined by Parliament and may not be varied to a judge's disadvantage after appointment, save during a Financial Emergency
4	Expenses charged on the Consolidated Fund	The salaries, allowances and pensions of judges and the administrative expenses of the Court are charged on the

#	Safeguard	How it operates
		Consolidated Fund of India and are therefore non-votable by Parliament
5	Conduct of judges not discussed	No discussion may take place in Parliament or in a State Legislature with respect to the conduct of a judge in the discharge of his duties, except upon a motion for his removal
6	Ban on practice after retirement	A retired judge of the Supreme Court is prohibited from pleading or acting in any court or before any authority within the territory of India
7	Power to punish for contempt	The Supreme Court may punish any person for its contempt, and thereby maintain its authority, dignity and honour
8	Freedom to appoint its staff	The Chief Justice of India appoints the officers and servants of the Court without executive interference, subject to the President's approval in matters of salary and conditions of service
9	Jurisdiction cannot be curtailed	Parliament may extend but may not curtail the jurisdiction and powers conferred on the Supreme Court by the Constitution
10	Separation from the executive	Article 50 directs the State to take steps to separate the judiciary from the executive in the public services of the State

4.6 Jurisdiction and Powers of the Supreme Court

Quick Concept

The Constitution confers a very extensive jurisdiction and vast powers on the Supreme Court. It is a federal court deciding disputes between the constituent units of the Union; a final court of appeal, in the manner of the former House of Lords; the final interpreter and guardian of the Constitution; and the guarantor of Fundamental Rights. It possesses in addition advisory and supervisory powers. Seven heads of jurisdiction are conventionally distinguished.

#	Head of jurisdiction	Content
1	Original jurisdiction Article 131	The Supreme Court decides, to the exclusion of every other court, disputes between the Centre and one or more States; between the Centre and any State on one side and one or more other States on the other; and between two or more States. The jurisdiction is both ORIGINAL, because no other court can hear the matter first, and EXCLUSIVE. The dispute must involve a question of law or fact on which the existence or extent of a legal right depends. It does NOT extend to a dispute arising out of a pre-Constitution treaty or agreement that continues in

		operation, to inter-State water disputes, to matters referred to the Finance Commission, to the adjustment of certain expenses and pensions between the Centre and the States, to an ordinary commercial dispute, or to a suit by a State against the Centre for recovery of damages.
2	Writ jurisdiction Article 32	The Supreme Court issues writs — habeas corpus, mandamus, prohibition, certiorari and quo warranto — for the enforcement of Fundamental Rights. This jurisdiction is original but NOT exclusive, because the High Courts share it under Article 226. The Supreme Court's writ jurisdiction is narrower in scope, being confined to Fundamental Rights, but wider in territorial reach, extending over the whole of India. Parliament may confer on the Supreme Court the power to issue writs for purposes other than the enforcement of Fundamental Rights.
3	Appellate jurisdiction Articles 132, 133, 134, 134-A and 136	Four channels of appeal exist. In CONSTITUTIONAL matters (Article 132) an appeal lies from any judgment of a High Court where the High Court certifies under Article 134-A that the case involves a substantial question of law as to the interpretation of the Constitution. In CIVIL matters (Article 133) an appeal lies where the High Court certifies that the case involves a substantial question of law of general importance which in its opinion needs to be decided by the Supreme Court. In CRIMINAL matters (Article 134) an appeal lies as of right where the High Court has on appeal reversed an order of acquittal and sentenced the accused to death; or has withdrawn a case from a subordinate court, convicted the accused and sentenced him to death; or certifies that the case is a fit one for appeal. By SPECIAL LEAVE (Article 136) the Supreme Court may in its discretion grant leave to appeal from any judgment, decree, determination, sentence or order in any cause or matter passed by any court or tribunal in India, EXCEPT a court or tribunal constituted under any law relating to the armed forces. Article 136 is discretionary, extraordinary and not confined by the categories above.
4	Advisory jurisdiction Article 143	The President may refer to the Supreme Court for its opinion (i) any question of law or fact of public importance which has arisen or is likely to arise, and (ii) any dispute arising out of a pre-Constitution treaty, agreement, covenant, engagement, sanad or similar instrument. In the FIRST case the Court MAY tender its opinion or may decline to do so; in the SECOND case the Court MUST tender its opinion. In neither case is the opinion binding on the President, and an opinion under Article 143 is not a binding declaration of law under Article 141 in the way that a judgment is.
5	Court of record Article 129	The Supreme Court is a court of record, which carries two consequences. Its judgments, proceedings and acts are recorded for perpetual memory and testimony, are admitted as evidence, cannot be questioned when

		produced before any court, and are recognised as legal precedents and legal references. And it has power to punish for contempt of itself, the punishment being simple imprisonment for up to six months, or a fine of up to two thousand rupees, or both, under the Contempt of Courts Act, 1971. Contempt is civil where it consists of wilful disobedience to a judgment, order or writ, and criminal where the act scandalises or lowers the authority of the court, prejudices or interferes with a judicial proceeding, or obstructs the administration of justice. Since a ruling of 1991 the Supreme Court may punish contempt not only of itself but also of the High Courts, the subordinate courts and tribunals throughout India.
6	Judicial review Articles 13 and 137	The power to examine the constitutionality of legislative enactments and executive orders, both of the Centre and of the States. Where they are found to be ultra vires the Constitution they are declared illegal, unconstitutional and void, and cannot be enforced by the Government. The purposes of judicial review are to uphold the supremacy of the Constitution, to maintain the federal equilibrium between the Centre and the States, and to protect the Fundamental Rights of citizens. Article 137 additionally empowers the Court to review any judgment pronounced or order made by it.
7	Other powers	The Supreme Court decides disputes regarding the election of the President and the Vice-President as the original, exclusive and final authority. It enquires into the conduct and behaviour of the Chairman and members of the Union Public Service Commission on a reference by the President, and its advice on such a reference is binding. It may review its own judgment or order, and is therefore self-correcting — as when Kesavananda Bharati (1973) departed from Golak Nath (1967). It may withdraw cases pending before the High Courts and dispose of them itself, and may transfer a case from one High Court to another (Article 139-A). The law it declares is binding on all courts within the territory of India (Article 141). Its decrees and orders are enforceable throughout India and it may pass any order necessary for doing complete justice (Article 142). All civil and judicial authorities in India must act in aid of the Supreme Court (Article 144). It is the ultimate interpreter of the Constitution.

Memory Trick

The seven heads of jurisdiction = OWAA-CJO — Original, Writ, Appellate, Advisory, Court of record, Judicial review, Other powers.

Currency Alert — Advisory Jurisdiction in Practice**Special Reference No. 1 of 2025 — the most significant use of Article 143 in decades**

On 8 April 2025 the Supreme Court, in *State of Tamil Nadu v. Governor of Tamil Nadu*, held that the Governor's indefinite delay in dealing with ten Bills passed by the State Legislature was illegal, laid down timelines for the Governor and the President to act under Articles 200 and 201, and evolved a doctrine of 'deemed assent' where no decision was taken within a reasonable time.

Rather than seeking a review, the President made a reference under Article 143(1) on 13 May 2025, placing FOURTEEN questions before the Supreme Court on the powers of the Governor and the President under Articles 200 and 201. Several opposition-governed States objected that the reference was an appeal in disguise. A Constitution Bench of five judges led by Chief Justice B. R. Gavai heard the matter from 19 August 2025 and delivered its opinion on 20 NOVEMBER 2025, reported as *In re: Assent, Withholding or Reservation of Bills by the Governor and the President of India, 2025 INSC 1333*.

The Court rejected the objection to maintainability, holding that Article 143 is a constitutional safety valve that permits the President to seek clarity where judicial decisions have created systemic uncertainty. On the merits it held that COURTS CANNOT PRESCRIBE TIMELINES for the Governor or the President to act on Bills; that the concept of 'deemed assent' is unconstitutional; that the discretion of the President under Article 201 is not justiciable; that the Governor's action is not open to judicial review before the Bill becomes law; and that the Governor cannot be made a party to court proceedings, having regard to Article 361. Some questions were returned unanswered as falling outside the scope of the reference.

For the examination, this is the standing modern illustration of Article 143. Remember the year, the number of questions, and the central holding that no judicial timeline can be imposed.

4.7 Procedure of the Court

- The Supreme Court may, with the approval of the President, make rules regulating the practice and procedure of the Court.
- A case involving a substantial question of law as to the interpretation of the Constitution, and a reference under Article 143, must be decided by a Bench of at least FIVE judges — a Constitution Bench.

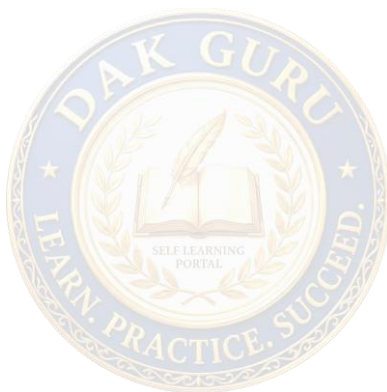
- All other cases are decided by a Bench of not less than THREE judges, though in practice most matters are heard by Benches of two judges, called Division Benches, under the Supreme Court Rules.
- Judgments are delivered in open court. All judgments are by majority vote, and a judge who differs is entitled to deliver a dissenting judgment or opinion — an important departure from the practice of the Privy Council, which delivered a single opinion.

4.8 Articles 124 to 147 at a Glance

Article	Subject	Article	Subject
124	Establishment and constitution of the Supreme Court	124-A	National Judicial Appointments Commission — STRUCK DOWN in 2015
124-B	Functions of the Commission — STRUCK DOWN in 2015	124-C	Power of Parliament to make law — STRUCK DOWN in 2015
125	Salaries etc. of judges	126	Appointment of acting Chief Justice
127	Appointment of ad hoc judges	128	Attendance of retired judges at sittings of the Supreme Court
129	Supreme Court to be a court of record	130	Seat of the Supreme Court
131	Original jurisdiction of the Supreme Court	131-A	Exclusive jurisdiction as to constitutional validity of Central laws — REPEALED
132	Appellate jurisdiction in constitutional matters	133	Appellate jurisdiction in civil matters
134	Appellate jurisdiction in criminal matters	134-A	Certificate for appeal to the Supreme Court
135	Jurisdiction and powers of the Federal Court to be exercisable by the Supreme Court	136	Special leave to appeal by the Supreme Court
137	Review of judgments or orders by the Supreme Court	138	Enlargement of the jurisdiction of the Supreme Court
139	Conferment on the Supreme Court of powers to issue certain writs	139-A	Transfer of certain cases
140	Ancillary powers of the Supreme Court	141	Law declared by the Supreme Court to be binding on all courts
142	Enforcement of decrees and orders of the Supreme Court	143	Power of the President to consult the Supreme Court
144	Civil and judicial authorities to act in aid of the Supreme Court	144-A	Special provisions as to disposal of questions relating to constitutional validity of laws — REPEALED
145	Rules of court etc.	146	Officers and servants and the expenses of the Supreme Court
147	Interpretation		

Exam Focus

Three Articles in this Part are no longer operative and are examined precisely because of that. Articles 131-A and 144-A were inserted by the 42nd Amendment, 1976 and REPEALED by the 43rd Amendment, 1977. Articles 124-A, 124-B and 124-C were inserted by the 99th Amendment, 2014 to create the National Judicial Appointments Commission, and were STRUCK DOWN as unconstitutional by the Supreme Court in 2015 — note the difference between an Article repealed by Parliament and one struck down by the Court.



Part 5

The High Courts

Chapter V of Part VI of the Constitution — Articles 214 to 232

Quick Concept

In the single integrated judicial system established by the Constitution, the High Court stands below the Supreme Court but above all the subordinate courts. It occupies the highest position in the judicial administration of a State. The institution of the High Court is older than the Constitution and older than the Federal Court: High Courts were first established in India in 1862 at Calcutta, Bombay and Madras under the Indian High Courts Act, 1861, and a fourth was set up at Allahabad in 1866.

- Article 214 provides that there shall be a High Court for each State. The Constitution (Seventh Amendment) Act, 1956 authorised Parliament to establish a common High Court for two or more States, or for two or more States and a Union territory.
- Article 231 is the provision under which a common High Court is established. Article 230 empowers Parliament to extend the jurisdiction of a High Court to, or exclude it from, any Union territory.
- There are at present TWENTY-FIVE High Courts in India. The Calcutta High Court, established in 1862, is the oldest. The Sikkim High Court, established in 1975, is the smallest, with a sanctioned strength of three judges. The Allahabad High Court is the largest, with a sanctioned strength of one hundred and sixty judges.
- The two most recently constituted High Courts are the Telangana High Court and the Andhra Pradesh High Court, both of which came into existence on 1 January 2019 following the bifurcation of the former common High Court under the Andhra Pradesh Reorganisation Act, 2014.

Currency Alert — Two Corrections on the High Courts

Two statements found in older material need correction.

FIRST, on Union territories with their own High Court. It used to be correct to say that Delhi and Jammu & Kashmir were the two Union territories with a High Court of their own. Since the reorganisation of 31 October 2019 under the Jammu and Kashmir Reorganisation Act, 2019, the former State of Jammu and Kashmir has

become two Union territories — Jammu and Kashmir, and Ladakh — which share a single common High Court, renamed the High Court of Jammu & Kashmir and Ladakh. The accurate statement today is that DELHI alone among the Union territories has an exclusive High Court of its own, which it has had since 1966, while Jammu and Kashmir and Ladakh share a common one.

SECOND, on the number of common High Courts. The standard textbooks state that there are THREE common High Courts — the Punjab and Haryana High Court (Punjab, Haryana and the Union territory of Chandigarh); the Bombay High Court (Maharashtra, Goa, and the Union territory of Dadra and Nagar Haveli and Daman and Diu, which were merged into a single Union territory on 26 January 2020); and the Gauhati High Court (Assam, Nagaland, Mizoram and Arunachal Pradesh). On a plain reading there is now a FOURTH, namely the High Court of Jammu & Kashmir and Ladakh, which serves two Union territories. Some sources count six or more High Courts as exercising jurisdiction over more than one State or Union territory, by including the Kerala High Court (Kerala and Lakshadweep), the Madras High Court (Tamil Nadu and Puducherry) and the Calcutta High Court (West Bengal and the Andaman and Nicobar Islands).

IN THE EXAMINATION, the safest course is to state the conventional answer of three common High Courts if the question is framed in the classical terms of States, and to note the Jammu & Kashmir and Ladakh position if the question refers to Union territories. Both readings are defensible; what is not defensible is the old statement that Jammu & Kashmir is a Union territory with a High Court of its own.

5.1 Organisation of a High Court

Article 216 provides that every High Court, whether exclusive or common, shall consist of a Chief Justice and such other judges as the President may from time to time deem it necessary to appoint. The Constitution does not fix the strength of a High Court; it is left to the discretion of the President and is determined from time to time on the basis of the workload of the Court. This is the crucial structural difference from the Supreme Court, whose strength can be altered only by an Act of Parliament.

Aspect	Provision
Appointment Article 217	Judges are appointed by the President by warrant under his hand and seal. The Chief Justice of a High Court is appointed after consultation with the Chief Justice of India and the Governor of the State. For any other judge, the Chief Justice of the High Court concerned is also consulted. In the case of a common

Aspect	Provision
	High Court, the Governors of all the States concerned are consulted. In practice appointments are made on the recommendation of the Collegium consisting of the Chief Justice of India and the two senior-most judges of the Supreme Court.
Qualifications Article 217(2)	A person must be a citizen of India, AND must either (a) have held a judicial office in the territory of India for at least TEN years, or (b) have been an advocate of a High Court, or of two or more such courts in succession, for at least TEN years. No minimum age is prescribed. NOTE that there is NO provision for the appointment of a distinguished jurist, unlike Article 124(3)(c) for the Supreme Court — this is a favourite comparison.
Oath Article 219	Made and subscribed before the GOVERNOR of the State, or a person appointed by him. The four-fold form of the oath is the same as that taken by a judge of the Supreme Court — true faith and allegiance to the Constitution, upholding the sovereignty and integrity of India, performance of duties without fear or favour, affection or ill-will, and upholding the Constitution and the laws.
Tenure Article 217(1)	No fixed term is prescribed. A judge holds office until he attains the age of SIXTY-TWO years; may resign by writing under his hand addressed to the President; may be removed by the President on the recommendation of Parliament; and vacates office when appointed a judge of the Supreme Court or when transferred to another High Court. Any question as to age is decided by the President after consultation with the Chief Justice of India, and his decision is final.
Removal Articles 217(1)(b) and 218	The same procedure and the same two grounds as for a judge of the Supreme Court — removal by order of the President after an address by each House of Parliament supported by a special majority, on the ground of proved misbehaviour or incapacity, the process being regulated by the Judges (Inquiry) Act, 1968. Article 218 applies the relevant provisions of Article 124 to the High Courts. No judge of a High Court has ever been removed under this procedure.
Salaries Article 221	The Chief Justice of a High Court draws Rs. 2,50,000 per month and every other judge Rs. 2,25,000 per month, with effect from 1 January 2016, under the High Court and Supreme Court Judges (Salaries and Conditions of Service) Amendment Act, 2018, together with house rent allowance, furnishing allowance, sumptuary allowance and other benefits. They may not be varied to a judge's disadvantage after appointment, save during a Financial Emergency.
Transfer Article 222	The President may transfer a judge from one High Court to any other High Court, after consultation with the Chief Justice of India. On transfer the judge is entitled to a compensatory allowance in addition to his salary, as determined by Parliament.

Aspect	Provision
Acting Chief Justice Article 223	The President may appoint a judge of the High Court as Acting Chief Justice when the office of Chief Justice is vacant, or when the Chief Justice is by reason of absence or otherwise unable to perform the duties of his office.
Additional and acting judges Article 224	The President may appoint duly qualified persons as ADDITIONAL judges for a temporary period not exceeding two years, where there is a temporary increase in the business of the High Court or arrears of work. He may appoint an ACTING judge where a permanent judge is temporarily unable to perform his duties or is acting as Chief Justice. No additional or acting judge may hold office beyond the age of sixty-two.
Retired judges Article 224-A	The Chief Justice of a High Court may, with the previous consent of the President, request any person who has held the office of a judge of that High Court or of any other High Court to sit and act as a judge of that High Court. Such a person is entitled to such allowances as the President may determine, and while so sitting has all the jurisdiction, powers and privileges of a judge of that High Court — but is not otherwise deemed to be a judge of it. His consent is necessary.

Currency Alert — Article 224-A Revived

Article 224-A has come alive — do not describe it as a dormant provision.

Article 224-A lay virtually unused for decades. It was revived by the Supreme Court in *Lok Prahari v. Union of India*, decided on 20 April 2021, which laid down guidelines for its use — including a condition that recourse to it should ordinarily be had only where vacancies exceeded twenty per cent of the sanctioned strength, or where more than ten per cent of pending cases were over five years old.

On 30 January 2025 a Special Bench of three judges led by Chief Justice Sanjiv Khanna, with Justices B. R. Gavai and Surya Kant, RELAXED those conditions. The twenty per cent vacancy threshold was kept in abeyance, and each High Court was permitted to appoint between two and five ad hoc judges, subject to a ceiling of ten per cent of its sanctioned strength. Such judges are to sit in a Bench presided over by a sitting judge of the High Court and are to decide pending criminal appeals. At that time more than six million cases were pending in the twenty-five High Courts, against three hundred and seventy-one vacancies out of a combined sanctioned strength of one thousand one hundred and twenty-two judges.

The power was actually exercised on 3 February 2026, when the Supreme Court Collegium approved the appointment of five retired judges as ad hoc judges of the

Allahabad High Court for a term of two years. This is now the standard illustration of Article 224-A and should be cited.

5.2 Independence of the High Court — the Ten Safeguards

The Constitution secures the independence of the High Courts by the same ten devices used for the Supreme Court, with the differences of detail noted below. Learn the differences rather than the list, since the list itself is common to both.

#	Safeguard	How it operates in relation to a High Court
1	Mode of appointment	By the President in consultation with the Chief Justice of India, the Governor of the State, and, for a puisne judge, the Chief Justice of the High Court
2	Security of tenure	Removable only by the President on an address by both Houses of Parliament supported by a special majority — not at the pleasure of the President
3	Fixed service conditions	Salaries and allowances are fixed by Parliament and may not be varied to a judge's disadvantage after appointment, save during a Financial Emergency
4	Expenses charged on the Consolidated Fund	Salaries, allowances and the administrative expenses of the Court are charged on the CONSOLIDATED FUND OF THE STATE and are non-votable, while the PENSIONS of judges are charged on the Consolidated Fund of INDIA
5	Conduct of judges not discussed	No discussion in Parliament or in a State Legislature on the conduct of a judge in the discharge of his duties, except upon a motion for removal
6	Ban on practice after retirement	A retired PERMANENT judge of a High Court may not plead or act in any court or before any authority in India, EXCEPT the Supreme Court and the other High Courts
7	Power to punish for contempt	A High Court may punish any person for its contempt, under Article 215
8	Freedom to appoint its staff	The Chief Justice appoints the officers and servants of the Court without executive interference
9	Jurisdiction cannot be curtailed	Neither Parliament nor a State Legislature may curtail the jurisdiction and powers conferred on a High Court by the Constitution, though they may change them in other respects
10	Separation from the executive	Article 50 directs the separation of the judiciary from the executive in the public services of the State

5.3 Jurisdiction and Powers of a High Court

The Constitution does not set out the jurisdiction of a High Court in the way it sets out that of the Supreme Court. Article 225 preserves the jurisdiction of the existing High Courts as it stood immediately before the commencement of the Constitution, subject to the provisions of the Constitution and to legislation. Seven heads of jurisdiction are conventionally distinguished.

#	Head of jurisdiction	Content
1	Original jurisdiction Article 225	The power to hear disputes in the first instance and not by way of appeal. It extends to matters of admiralty, will, marriage, divorce, company law and contempt of court; to disputes relating to the election of members of Parliament and of State Legislatures; to revenue matters; to the enforcement of Fundamental Rights; and to cases transferred from a subordinate court which involve a substantial question of the interpretation of the Constitution. FOUR High Courts — Calcutta, Bombay, Madras and Delhi — additionally have ordinary original civil jurisdiction in cases exceeding a prescribed value.
2	Writ jurisdiction Article 226	A High Court may issue directions, orders or writs, including the writs of habeas corpus, mandamus, prohibition, quo warranto and certiorari, for the ENFORCEMENT OF FUNDAMENTAL RIGHTS AND FOR ANY OTHER PURPOSE. The words 'for any other purpose' make this jurisdiction WIDER IN SCOPE than that of the Supreme Court under Article 32, which is confined to Fundamental Rights. A High Court may issue a writ to any person, authority or Government within its territorial jurisdiction, and also to one outside that jurisdiction if the cause of action arises wholly or in part within it. The jurisdiction is not exclusive, being concurrent with that of the Supreme Court under Article 32. It is, however, DISCRETIONARY, whereas relief under Article 32 cannot be refused, Article 32 being itself a Fundamental Right.
3	Appellate jurisdiction	A High Court is primarily a court of appeal from the subordinate courts within its territory. In CIVIL matters it hears first appeals from decrees of district courts and subordinate judges on questions of both law and fact where the amount exceeds the prescribed limit, and second appeals on questions of law alone; it hears intra-court appeals from a single judge to a Division Bench; and appeals from the decisions of administrative and other tribunals lie to a Division Bench, following a ruling of 1997. In CRIMINAL matters it hears appeals from the judgments of sessions courts and additional sessions courts where the sentence exceeds seven years' imprisonment, and it must confirm every sentence of death passed by a sessions court before it can be executed; appeals from assistant sessions judges, metropolitan magistrates and

#	Head of jurisdiction	Content
		other magistrates lie in the cases specified by the Bharatiya Nagarik Suraksha Sanhita, 2023.
4	Supervisory jurisdiction Article 227	A High Court has superintendence over all courts and tribunals within its territorial jurisdiction, EXCEPT military courts and tribunals. In exercise of this power it may call for returns from such courts; make and issue general rules and prescribe forms for regulating their practice and proceedings; prescribe forms in which books, entries and accounts are to be kept; and settle the fees payable to the sheriff, clerks, officers and legal practitioners. This is an extraordinary power and is to be used most sparingly — typically where there is excess of jurisdiction, a gross violation of natural justice, an error of law apparent on the face of the record, or a perverse finding of fact. Note that this superintendence is both judicial AND administrative, and extends to tribunals as well as courts, which makes it wider than the corresponding power of the Supreme Court.
5	Control over subordinate courts Articles 233 to 237	A High Court exercises administrative control over the subordinate judiciary. It is consulted by the Governor in the matter of appointment, posting and promotion of district judges and of persons belonging to the judicial service of the State. It deals with the posting, promotion, grant of leave, transfer and discipline of members of the judicial service other than district judges. It may withdraw a case pending in a subordinate court if it involves a substantial question of law as to the interpretation of the Constitution, and may either dispose of the case itself or determine the question and return the case. The law it declares is binding on all subordinate courts within its jurisdiction.
6	Court of record Article 215	Every High Court is a court of record. Its judgments, proceedings and acts are recorded for perpetual memory and testimony, are admitted as evidence, cannot be questioned when produced before any court, and are recognised as legal precedents and legal references. It has power to punish for contempt of itself, whether committed inside or outside the court, the punishment being simple imprisonment or a fine or both under the Contempt of Courts Act, 1971. Civil contempt is wilful disobedience to a judgment, order or writ; criminal contempt is an act that scandalises or lowers the authority of the court, prejudices or interferes with a judicial proceeding, or obstructs the administration of justice. A High Court may also punish for contempt of a subordinate court.
7	Judicial review Articles 13 and 226	The power to examine the constitutionality of legislative enactments and executive orders, of both the Centre and the States, and to declare them illegal, unconstitutional and void where they are ultra vires. A law may be challenged on three grounds: that it infringes a Fundamental Right;

#	Head of jurisdiction	Content
		that it is outside the competence of the authority that framed it; and that it is repugnant to some other provision of the Constitution. The 42nd Amendment, 1976 curtailed this power of the High Courts, and the 43rd Amendment, 1977 restored the original position. The expression 'judicial review' is nowhere used in the Constitution, but the power flows from Articles 13 and 226.

Memory Trick

The seven heads for a High Court = OWAS-CJR — Original, Writ, Appellate, Supervisory, Control over subordinate courts, Court of record, Judicial review. Compare the Supreme Court's OWAA-CJO: the High Court has Supervisory and Control in place of the Supreme Court's Advisory and Other powers.

5.4 Supreme Court and High Court Compared

This comparison is set in the examination almost every year, in one form or another. Learn every row.

Aspect	Supreme Court	High Court
Part and Articles	Part V, Articles 124 to 147	Part VI, Articles 214 to 232
Sanctioned strength	Fixed by an Act of Parliament — presently 38, including the Chief Justice of India	Fixed by the President by order under Article 216, on the basis of workload
Retirement age	Sixty-five years	Sixty-two years
Qualifications	Five years as a High Court judge, OR ten years as a High Court advocate, OR a distinguished jurist in the opinion of the President	Ten years in judicial office in India, OR ten years as a High Court advocate. There is NO distinguished jurist route
Oath taken before	The President	The Governor of the State
Salary — Chief Justice	Rs. 2,80,000 per month	Rs. 2,50,000 per month
Salary — other judges	Rs. 2,50,000 per month	Rs. 2,25,000 per month

Aspect	Supreme Court	High Court
Writ jurisdiction	Under Article 32, ONLY for the enforcement of Fundamental Rights; relief cannot be refused	Under Article 226, for Fundamental Rights AND for any other purpose — wider in scope, but discretionary
Territorial reach of writs	The whole of India	Its own territorial jurisdiction, extending beyond it only where the cause of action arises within
Ban on practice after retirement	Cannot plead or act in ANY court or authority in India	Cannot plead or act EXCEPT in the Supreme Court and other High Courts
Expenses charged on	The Consolidated Fund of India	The Consolidated Fund of the State — but pensions on the Consolidated Fund of India
Transfer of judges	Not applicable	The President may transfer a judge from one High Court to another under Article 222
Superintendence over tribunals	Not conferred in terms	Conferred by Article 227, except over military courts and tribunals

5.5 Articles 214 to 232 at a Glance

Article	Subject	Article	Subject
214	High Courts for States	225	Jurisdiction of existing High Courts
215	High Courts to be courts of record	226	Power of High Courts to issue certain writs
216	Constitution of High Courts	226-A	Constitutional validity of Central laws not to be considered in proceedings under Article 226 — REPEALED
217	Appointment and conditions of the office of a judge of a High Court	227	Power of superintendence over all courts by the High Court
218	Application of certain provisions relating to the Supreme Court to High Courts	228	Transfer of certain cases to the High Court
219	Oath or affirmation by judges of High Courts	228-A	Special provisions as to disposal of questions relating to constitutional validity of State laws — REPEALED
220	Restriction on practice after being a permanent judge	229	Officers and servants and the expenses of High Courts

Article	Subject	Article	Subject
221	Salaries etc. of judges	230	Extension of the jurisdiction of High Courts to Union territories
222	Transfer of a judge from one High Court to another	231	Establishment of a common High Court for two or more States
223	Appointment of an acting Chief Justice	232	Interpretation — REPEALED
224	Appointment of additional and acting judges		
224-A	Appointment of retired judges at sittings of High Courts		

Exam Focus

Articles 226-A, 228-A and 232 have all been REPEALED. Articles 226-A and 228-A were inserted by the 42nd Amendment, 1976 as part of the curtailment of judicial review, and were repealed by the 43rd Amendment, 1977. Article 232 was repealed by the 7th Amendment, 1956.



Part 6

Civil Servants & National Commissions

Article 311 · Article 338 · Article 338-A · Article 338-B

6.1 Article 310 — the Doctrine of Pleasure

Article 311 cannot be understood without Article 310, which it qualifies. Article 310 embodies the English doctrine of pleasure, under which a public servant holds office at the pleasure of the Crown. In its Indian form, a member of the defence services, of a civil service of the Union, of an all-India service, or a person holding any military or civil post under the Union, holds office during the pleasure of the PRESIDENT. Correspondingly, a member of a civil service of a State or a person holding a civil post under a State holds office during the pleasure of the GOVERNOR.

The doctrine in India is not, however, absolute as it is in England. It is subject to the Constitution itself, and in particular to the two safeguards contained in Article 311. It is also subject to the express constitutional protections given to judges of the Supreme Court and the High Courts, to the Comptroller and Auditor-General, to the Chief Election Commissioner, and to the Chairman and members of the Public Service Commissions, none of whom hold office at pleasure.

6.2 Article 311 — the Two Safeguards

Quick Concept

Article 311 places two restrictions on the doctrine of pleasure. It applies only to a person who is a member of a civil service of the Union or of an all-India service or of a civil service of a State, or who holds a civil post under the Union or a State. It does NOT protect members of the defence services or persons holding military posts, and it does not protect persons employed on a purely contractual basis.

	The safeguard
Safeguard 1 Article 311(1)	A civil servant may not be DISMISSED or REMOVED by an authority subordinate to that by which he was appointed. Note that this first safeguard applies to dismissal and removal only; it does not extend to reduction in rank. Note also that the requirement is as to the RANK of the authority, not its

	The safeguard
	identity — the dismissing authority need not be the very authority that appointed him, but must not be subordinate to it.
Safeguard 2 Article 311(2)	A civil servant may not be DISMISSED, REMOVED or REDUCED IN RANK except after an inquiry in which he has been informed of the charges against him and given a reasonable opportunity of being heard in respect of those charges. This second safeguard covers all three major penalties.

The Three Exceptions — When No Inquiry Is Required

The second safeguard, that of holding an inquiry, is not available in three cases. The first safeguard is not affected by these exceptions and continues to apply.

1. Where a civil servant is dismissed, removed or reduced in rank on the ground of conduct which has led to his conviction on a criminal charge.
2. Where the authority empowered to dismiss, remove or reduce in rank is satisfied that for some reason, to be recorded by that authority in writing, it is not reasonably practicable to hold such an inquiry.
3. Where the President or the Governor, as the case may be, is satisfied that in the interest of the security of the State it is not expedient to hold such an inquiry.

Departmental Angle

Article 311 is the most directly operational provision of the Constitution for an Inspector Posts or a Sub-Divisional Head. Every charge sheet issued under Rule 14 of the Central Civil Services (Classification, Control and Appeal) Rules, 1965, every inquiry held under those Rules, and every order of penalty passed by a Disciplinary Authority draws its constitutional validity from Article 311(2). The three major penalties named in Article 311 — dismissal, removal and reduction in rank — correspond to the major penalties in Rule 11 of the CCS (CCA) Rules. Where a minor penalty alone is proposed, the full inquiry procedure of Article 311(2) is not attracted, though the requirements of natural justice and of the Rules still apply.

Reasonable Opportunity and the Effect of the 42nd Amendment

- Originally, the opportunity of being heard was afforded at TWO stages — at the inquiry stage, when the charges were established, and again at the punishment stage, when the civil servant could make a representation against the penalty proposed.

- The Constitution (Forty-second Amendment) Act, 1976 ABOLISHED the second opportunity, that is, the right to make a representation against the punishment proposed.
- The present position is therefore that after the inquiry is concluded, dismissal, removal or reduction in rank may be imposed on the basis of the evidence adduced at the inquiry, without affording any further opportunity of making a representation on the penalty proposed.
- The Supreme Court has held that a 'reasonable opportunity of being heard' comprises three elements: an opportunity to deny his guilt and to establish his innocence, which requires that he be told the charges against him and the allegations on which they are based; an opportunity to defend himself by cross-examining the witnesses produced against him and by examining his own witnesses; and the supply by the disciplinary authority of a copy of the inquiry officer's report, for the civil servant's observations, before the authority considers it and reaches its own conclusion.

Memory Trick

Article 311 = TWO safeguards, THREE exceptions. Safeguard 1: no dismissal or removal by a subordinate authority. Safeguard 2: no dismissal, removal or reduction in rank without inquiry. Exceptions: Criminal conviction, Not reasonably practicable, Security of the State — C-N-S.

6.3 The Three National Commissions

Quick Concept

The Constitution provides for three National Commissions to safeguard the interests of the Scheduled Castes, the Scheduled Tribes and the socially and educationally backward classes. Each is a CONSTITUTIONAL body, established directly by the Constitution, and not a statutory body established by an Act of Parliament — a distinction that is regularly examined and regularly got wrong.

Aspect	NCSC — Article 338	NCST — Article 338-A	NCBC — Article 338-B
Given constitutional status by	The 65th Amendment Act, 1990	The 89th Amendment Act, 2003	The 102nd Amendment Act, 2018
Came into existence	Article 338 originally provided only for a Special Officer for the Scheduled Castes and	On 19 February 2004, on the bifurcation of the combined Commission by the 89th Amendment.	With effect from 11 August 2018. Before that it functioned as a statutory body under the

	Scheduled Tribes, designated the Commissioner. A combined Commission for both was created by the 65th Amendment. The separate NCSC came into existence on 19 February 2004	The Ministry of Tribal Affairs had been created in 1999	National Commission for Backward Classes Act, 1993, which the 102nd Amendment repealed
Composition	A Chairperson with the rank of a Cabinet Minister, a Vice-Chairperson with the rank of a Minister of State, and three other Members with the rank of a Secretary to the Government of India, together with a Secretary to the Commission	The same	The same
Tenure	Three years for the Chairperson, the Vice-Chairperson and the Members	Three years	Three years
Appointed by	The President by warrant under his hand and seal	The President by warrant under his hand and seal	The President by warrant under his hand and seal
Functions	To investigate and monitor all matters relating to the constitutional and legal safeguards for the Scheduled Castes; to inquire into specific complaints; to participate in and advise on planning for their socio-economic development; to present annual and other reports to the President; to recommend measures for the effective implementation of safeguards; and to discharge such other	The same functions in relation to the Scheduled Tribes. Additional functions were specified by the President in 2005, covering rights over forest produce and over mineral and water resources, tribal development, relief and rehabilitation, prevention of alienation of tribal land, protection of forests, implementation of the Panchayats (Extension to the Scheduled Areas) Act,	To investigate and monitor all matters relating to the safeguards for the socially and educationally backward classes; to inquire into specific complaints; to advise on and evaluate their socio-economic development; to present annual and other reports to the President; and to recommend measures for the effective implementation of safeguards

	functions as the President may specify	and elimination of shifting cultivation	
Reports	An annual report to the President, who causes it to be laid before each House of Parliament together with a memorandum explaining the action taken on the recommendations and the reasons for non-acceptance of any of them. A report relating to a State is forwarded to the Governor, who lays it before the State Legislature with a similar memorandum	The same	The same
Powers	While investigating a matter or inquiring into a complaint, the Commission has all the powers of a CIVIL COURT trying a suit — to summon and enforce the attendance of any person and examine him on oath; to require the discovery and production of any document; to receive evidence on affidavits; to requisition any public record from any court or office; to issue summonses for the examination of witnesses and documents; and any other matter that the President may determine	The same. In addition, the Union and every State Government must CONSULT the Commission on all major policy matters affecting the Scheduled Tribes	The same. In addition, the Union and every State Government must consult the Commission on all major policy matters affecting the socially and educationally backward classes — SUBJECT TO THE 2021 PROVISIO NOTED BELOW

Currency Alert — the 105th Amendment

The Constitution (One Hundred and Fifth Amendment) Act, 2021 — State lists are outside the consultation requirement

The 102nd Amendment of 2018 had inserted Article 338-B, giving constitutional status to the National Commission for Backward Classes, and Article 342-A, empowering the President to specify the socially and educationally backward classes for any State or Union territory in consultation with the Governor, and it had inserted clause (26C) in Article 366 defining the expression.

In *Dr. Jaishri Laxmanrao Patil v. Chief Minister — the Maratha reservation case* — decided in May 2021, a Constitution Bench of five judges held by a majority of 3:2 that after the 102nd Amendment the power to identify and specify socially and educationally backward classes lay exclusively with the President, and that the States could only make recommendations. That reading invalidated a number of State lists and created immediate uncertainty for beneficiaries.

Parliament responded within days. The Constitution (One Hundred and Fifth Amendment) Act, 2021 received the assent of the President on 18 August 2021 and is deemed to have come into force on 15 August 2021. It made three changes. It amended clauses (1) and (2) of Article 342-A so that they operate for the purposes of the CENTRAL Government only, and inserted a new clause (3) expressly empowering every State and Union territory to prepare and maintain its own list of socially and educationally backward classes, which may differ from the Central List. It substituted clause (26C) of Article 366 accordingly. And, critically for this Part, it INSERTED A PROVISIO TO ARTICLE 338-B(9) providing that nothing in that clause shall apply for the purposes of clause (3) of Article 342-A.

THE PRACTICAL EFFECT is that the requirement of consulting the National Commission for Backward Classes on all major policy matters affecting socially and educationally backward classes applies to the CENTRAL List only. A State preparing or varying its own State List of such classes is NOT required to consult the Commission. Any statement that both the Union and the State Governments must consult the Commission on all such matters, without qualification, is now incorrect.

Memory Trick

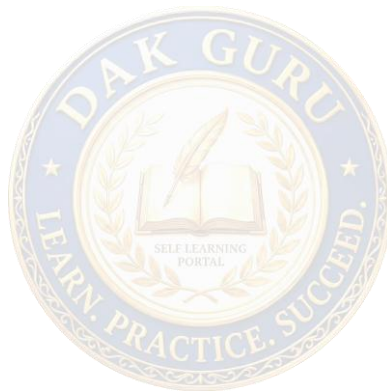
65–89–102–105 — the 65th Amendment (1990) created the combined Commission for Scheduled Castes and Scheduled Tribes; the 89th (2003) bifurcated it into the NCSC under Article 338 and the NCST under Article 338-A; the 102nd (2018) gave

constitutional status to the NCBC under Article 338-B; and the 105th (2021) restored to the States the power to maintain their own lists and excluded State lists from the NCBC consultation requirement.

6.4 Part 6 — Master Summary

Aspect	Position
Article 310	The doctrine of pleasure — civil servants hold office during the pleasure of the President or of the Governor
Article 311, Safeguard 1	No dismissal or removal by an authority subordinate to the appointing authority
Article 311, Safeguard 2	No dismissal, removal or reduction in rank without an inquiry and a reasonable opportunity of being heard
Article 311, three exceptions	Conviction on a criminal charge; where an inquiry is not reasonably practicable, for reasons recorded in writing; and where the President or Governor is satisfied that an inquiry is not expedient in the interest of the security of the State
Effect of the 42nd Amendment on Article 311	Abolished the second opportunity, that is, the right to make a representation against the penalty proposed
Whom Article 311 does NOT protect	Members of the defence services and holders of military posts
Article 338 — NCSC	National Commission for Scheduled Castes; constitutional status by the 65th Amendment, 1990; separate Commission from 19 February 2004
Article 338-A — NCST	National Commission for Scheduled Tribes; created by the 89th Amendment, 2003; from 19 February 2004
Article 338-B — NCBC	National Commission for Backward Classes; constitutional status by the 102nd Amendment, 2018, with effect from 11 August 2018
Composition of all three	A Chairperson, a Vice-Chairperson and three other Members, with a Secretary; tenure three years; appointed by the President by warrant under his hand and seal
Powers of all three	The powers of a civil court trying a suit — summoning attendance, discovery and production of documents, evidence on affidavit, requisition of public records, and issue of summonses

Aspect	Position
Reports of all three	An annual report to the President, laid before each House of Parliament with a memorandum on action taken; State reports to the Governor, laid before the State Legislature
The 105th Amendment, 2021	Restored to States and Union territories the power to maintain their own lists of socially and educationally backward classes, and excluded such State lists from the NCBC consultation requirement by a proviso to Article 338-B(9)



Part 7

Sources and Verification Record

Every currency-sensitive statement in this booklet was checked against the source listed below on 24 July 2026. Where a statement rests on a proposition that is settled and uncontroversial — for example the text of an Article, or the year of a well-known amendment — no separate verification entry has been made. The purpose of this Part is to allow the reader to satisfy himself independently, and to re-check any item that may have moved after the date of this edition.

Proposition verified	Source relied upon	Date of the source
Sanctioned strength of the Supreme Court raised from 34 to 38	Supreme Court (Number of Judges) Amendment Ordinance, 2026 (Ordinance 1 of 2026); Press Information Bureau release on the Union Cabinet decision	16 May 2026; Cabinet decision 5 May 2026
Replacement Bill still pending in Parliament	Supreme Court (Number of Judges) Amendment Bill, 2026 (Bill No. 128 of 2026), Lok Sabha; List of Business, Lok Sabha	Introduced 20 July 2026; listed for passing 22 July 2026
Salaries of judges of the Supreme Court and the High Courts unchanged	High Court and Supreme Court Judges (Salaries and Conditions of Service) Amendment Act, 2018	Effective retrospectively from 1 January 2016; no later revision traced as on July 2026
Insertion of 'Socialist' and 'Secular' in the Preamble upheld	Dr. Balram Singh and Others v. Union of India, Supreme Court, Bench of Chief Justice Sanjiv Khanna and Justice Sanjay Kumar	25 November 2024
Article 39(b) does not cover every privately owned resource	Property Owners Association v. State of Maharashtra, Supreme Court, nine judges, 7:2	5 November 2024
Economically Weaker Sections reservation, Articles 15(6) and 16(6)	Constitution (One Hundred and Third Amendment) Act, 2019; Janhit Abhiyan v. Union of India, Constitution Bench of five judges, 3:2; review dismissed 2023	Amendment 2019; judgment 7 November 2022

Proposition verified	Source relied upon	Date of the source
NCBC consultation does not extend to State lists	Constitution (One Hundred and Fifth Amendment) Act, 2021 — proviso to Article 338-B(9), amendments to Article 342-A and Article 366(26C); notification of the Ministry of Social Justice and Empowerment	Assent 18 August 2021; deemed in force from 15 August 2021
Collegium revived; NJAC struck down	Supreme Court Advocates-on-Record Association v. Union of India (Fourth Judges Case), striking down the Constitution (Ninety-ninth Amendment) Act, 2014 and the NJAC Act, 2014	2015
Article 224-A revived and its conditions relaxed	Lok Prahari v. Union of India (2021); order of the Special Bench of Chief Justice Sanjiv Khanna with Justices B. R. Gavai and Surya Kant; Supreme Court Collegium resolution appointing five ad hoc judges to the Allahabad High Court	Guidelines 20 April 2021; relaxation 30 January 2025; Collegium 3 February 2026
Article 143 advisory opinion on the powers of Governors	In re: Assent, Withholding or Reservation of Bills by the Governor and the President of India, Special Reference No. 1 of 2025, 2025 INSC 1333, Constitution Bench led by Chief Justice B. R. Gavai	Reference 13 May 2025; opinion 20 November 2025
Child labour legislation renamed and widened	Child Labour (Prohibition and Regulation) Amendment Act, 2016, renaming the parent Act the Child and Adolescent Labour (Prohibition and Regulation) Act, 1986; Press Information Bureau release	Assent 29 July 2016; in force 1 September 2016
Preventive detention still three months	Section 3 of the Constitution (Forty-fourth Amendment) Act, 1978 remains un-notified; confirmed against contemporaneous reporting and commentary as on July 2026	Amendment 1978; never brought into force
Twenty-five High Courts; Jammu & Kashmir and Ladakh a common High Court	Jammu and Kashmir Reorganisation Act, 2019; current listings of the High Courts	Reorganisation effective 31 October 2019; position verified July 2026
Right to privacy a fundamental right under Article 21	Justice K. S. Puttaswamy (Retd.) v. Union of India, Supreme Court, nine judges, unanimous	2017

Proposition verified	Source relied upon	Date of the source
Part IX-B partly struck down; Article 43-B unaffected	Union of India v. Rajendra N. Shah, Supreme Court	2021
Latest Constitutional Amendment in force	Constitution (One Hundred and Sixth Amendment) Act, 2023 — Nari Shakti Vandan Adhiniyam — brought into force by notification of the Ministry of Law and Justice. The Constitution (One Hundred and Thirty-first Amendment) Bill, 2026 FAILED to obtain the special majority in the Lok Sabha and did not become law	Notification 16 April 2026; Bill defeated April 2026

On the Two Unresolved Points

A closing word on method. Two propositions in this booklet could not be resolved to a single settled answer and are presented with both readings rather than with a false certainty. The first is the number of common High Courts, discussed in Part 5. The second is the sanctioned strength of the Supreme Court, which rests on an Ordinance whose replacement Bill had not completed its passage on the date of this edition. In an examination, a candidate who states the position accurately and notes the qualification will never be marked down; a candidate who states a stale figure with confidence will be.

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